

NFI Group Inc.

711 Kernaghan Avenue, Winnipeg, MB, R2C 3T4

Policy No.: 8616314-06

Policy Period:

From: 12:01 A.M. on October 01, 2025

To: 12:01 A.M. on October 01, 2026

Local time at the Named Insured address

Contact to report a claim:

Zurich, Claims Department

Attn: New Claims

100 King Street West, Suite 5500

P.O. Box 290,

Toronto, ON M5X 1C9

Email: claims@zurich.com

Telephone: (866) 345-3454

Fax: (877) 977-8077



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416-586-3000
www.zurichcanada.com

? Why choose Zurich?

Zurich Canada is your trusted risk partner with world-class capabilities, providing a wide range of comprehensive solutions through monoline, multiline and package insurance programs. Zurich's dedicated regional teams offer a forward-thinking approach to mitigate your risks and to help you better protect your business.



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Financial Strength and Stability

Zurich's financial strength ratings are among the strongest in the industry, with an A+/stable rating from A.M. Best and AA/stable from Standard & Poor's.



Broad Appetite

Broad appetite for primary and excess, including Side-A, on publicly traded, private, not-for-profit and financial institutions.



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Zurich's solution-oriented approach includes innovative, industry-leading products that recognize each business's unique risk profile.



Unmatched International Capabilities

Zurich's global network allows customers to access locally admitted policies in more than 210 countries and territories, giving you a consistent standard of insurance protection and service worldwide.



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Zurich's in-house claims specialists are committed to making your experience personal, clear, effortless and collaborative.

Ask about our additional capabilities & services

Privacy Consent Notice

By submitting the requested information, which may include, but is not limited to, name, address, date of birth, driver's licence number, medical information, financial information, driving record, automobile insurance policy history, and automobile insurance claims history, you are providing consent to Zurich Insurance Company Ltd and its subsidiaries and affiliates located in your country of residency or abroad (collectively, "Zurich"), for the collection, storage, use, disclosure, and processing of your personal information as may be necessary for the purposes of securing and administering the requested insurance coverage(s), including but not limited to, risk evaluation, policy execution, premium setting, premium collection, claims adjusting, administration, investigation and settlement, fraud prevention, detection and suppression, or statistical evaluation. You are also providing consent to Zurich for the disclosure of your personal information to third parties, as required for and in relation to the above-stated purposes, including reinsurers, third party administrators, brokers, agents, claims adjusters, regulators or other governmental or public bodies, taxing authorities, industry associations, other insurers, and other third parties involved in providing insurance services ("Third Parties"). If your policy is being arranged by a broker or an agent, you authorize Zurich to collect, store, use, disclose, and process personal information received from such broker or agent in relation to the above-stated purposes. Additionally, by providing information about a third party, including but not limited to, a family member, director, officer, employee, or any party that has an interest in or derives a benefit from the policy, you hereby covenant and warrant that you have obtained the appropriate consent from such third party to disclose their personal information to Zurich and for Zurich to use and disclose such information for any of the above-stated purposes.

Zurich is committed to protecting the privacy and confidentiality of information provided. Your personal information may be processed by and is securely stored within the offices of Zurich and authorized Third Parties, both in domestic and foreign jurisdictions outside Canada and is subject to applicable laws.

Zurich may retain your personal information as needed for any of the above-stated purposes or as necessary to comply with Zurich's legal and regulatory obligations, resolve disputes, and enforce Zurich's agreements. You may request to review the personal information Zurich maintains about you and make corrections by writing to: Privacy Officer, Zurich Insurance Company Ltd (Canadian Branch), 100 King Street West, Suite 5500, P.O. Box 290, Toronto, ON M5X 1C9 or by emailing privacy.zurich.canada@zurich.com.

You may refuse to consent or withdraw your consent to the collection, storage, use, disclosure or processing of your personal information; however, your refusal to provide consent may result in Zurich being unable to offer and administer insurance coverage or prevent Zurich from being able to pay any claim benefits payable under your policy.

Please contact the Zurich Privacy Officer if you require further information regarding the collection, use, disclosure, processing and storage of your personal information or if you have any complaints via email at privacy.zurich.canada@zurich.com. You can also review our Privacy Policy at <https://www.zurichcanada.com/en-ca/about-zurich/privacy-statement>.

For the purpose of the *Insurance Companies Act* (Canada), this document was issued in the course of the Company's insurance business in Canada.

Zurich Cyber Insurance



Insurance is provided by:

Zurich Insurance Company Ltd
First Canadian Place
100 King Street West
Suite 5500, P.O. Box 290
Toronto ON M5X 1C9

Policy No.: 8616314-06

Renewal of: 8616314-05

Declarations

Item 1. Named Insured:

NFI Group Inc.

Mailing Address:

711 Kernaghan Avenue, Winnipeg, MB, R2C 3T4

Item 2. Policy Period:

From: 12:01 A.M. on October 01, 2025

To: 12:01 A.M. on October 01, 2026

Local time at the address shown in Item 1.

Item 3. Aggregate Policy Limit of Liability:

\$5,000,000 USD each **Policy Period** for all payments under all Coverages combined

Item 4. Coverage Schedule

Coverages	Purchased	Each Claim/Event Limit of Liability	Aggregate Limit of Liability	Self-Insured Retention/Waiting Period *	Retroactive Date
A. LIABILITY COVERAGES					
1. Security Liability Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	N/A
2. Privacy Liability Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	N/A
3. Media Liability Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	April 24, 2019
4. Regulatory Proceedings Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	N/A
5. General Data Protection Regulations Proceedings Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	N/A

*(Each **Claim**, **Regulatory Proceeding**, **GDPR Proceeding**, **PCI Demand**, or **Event**)

	Coverages	Purchased	Each Claim/Event Limit of Liability	Aggregate Limit of Liability	Self-Insured Retention/ Waiting Period *	Retroactive Date
6.	Payment Card Industry Demand Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000 Part of and not in addition to the A.4. Regulatory Proceedings Coverage Aggregate Limit of Liability	\$2,500,000	N/A
B. FIRST PARTY COVERAGES						
1.	Breach Cost Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	N/A
2.	Business Income Loss Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	The greater of: \$2,500,000 or 18 hours (Waiting Hours Retention)	N/A
3.	Dependent Business Income Loss Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000 Part of and not in addition to the B.2. Business Income Loss Coverage Aggregate Limit of Liability	The greater of: \$2,500,000 or 18 hours (Waiting Hours Retention)	N/A
4.	System Failure Business Income Loss Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	The greater of: \$2,500,000 or 18 hours (Waiting Hours Retention)	N/A
5.	System Failure Dependent Business Income Loss Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000 Part of and not in addition to the B.4. System Failure Business Income Loss Coverage Aggregate Limit of Liability	The greater of: \$2,500,000 or 18 hours (Waiting Hours Retention)	N/A
6.	Digital Asset Replacement Expense Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	N/A
7.	Cyber Extortion Coverage	☒ Yes ☐ No	\$5,000,000	\$5,000,000	\$2,500,000	N/A
8.	Reward Payment Coverage	☒ Yes ☐ No	\$25,000	\$25,000 Part of and not in addition to the B.7. Cyber Extortion Coverage Aggregate Limit of Liability	Not applicable	N/A

*(Each Claim, Regulatory Proceeding, GDPR Proceeding, PCI Demand, or Event)

	Coverages	Purchased	Each Claim/Event Limit of Liability	Aggregate Limit of Liability	Self-Insured Retention/ Waiting Period *	Retroactive Date
9.	Reputational Damage Coverage	☒ Yes ☐ No	\$2,500,000 Subject to the Daily Cap limit of \$1,000,000	\$2,500,000 Subject to the Daily Cap limit of \$1,000,000	18 hours (Adverse Media Waiting Period)	N/A
10.	Social Engineering Funds Transfer Fraud Event Coverage	☒ Yes ☐ No	\$250,000	\$250,000	\$250,000	N/A
11.	Social Engineering Theft of Funds Held In Trust Coverage	☒ Yes ☐ No	\$250,000	\$250,000 Part of and not in addition to the B.10. Social Engineering Funds Transfer Fraud Event Coverage Aggregate Limit of Liability	\$250,000	N/A
12.	Social Engineering Theft of Personal Funds Coverage	☒ Yes ☐ No	\$250,000	\$250,000 Part of and not in addition to the B.10. Social Engineering Funds Transfer Fraud Event Coverage Aggregate Limit of Liability	\$250,000	N/A
13.	Claim Avoidance Coverage	☒ Yes ☐ No	\$50,000			N/A

*(Each Claim, Regulatory Proceeding, GDPR Proceeding, PCI Demand, or Event)

Item 5. Optional Extended Reporting Period: N/A

Item 6. Notices to us:

A. Address for notice of **Claims, Circumstances** or **Events**:

Zurich Insurance Company Ltd
First Canadian Place, 100 King Street West
Suite 5500, P.O. Box 290
Toronto, ON M5X 1C9
Phone: 1-866-345-3454; Fax: 1-877-977-8077
E-mail: claims@zurich.com

B. Address for all other notice:

MSG-Specialty E&O
Zurich Insurance Company Ltd
First Canadian Place, 100 King Street West
Suite 5500, P.O. Box 290
Toronto, ON M5X 1C9

Item 7. Policy Premium: \$205,000 USD

Item 8. Endorsement(s) Effective at Inception

#	Form Number	Edition Date	Coverage
-	ZC-SPR-D-300-A CW	(09/18a)	Cyber Declarations
-	ZC-SPR-300-A CW	(09/18)	Zurich Cyber Insurance Policy
-	ZC 6300 U	(01/22)	Statutory Conditions, General Conditions and Other Conditions

#	Form Number	Edition Date	Coverage
-	ZC 13001 U	(06/15)	Trade and Economic Sanctions Limitation
1	ZC-SPR-350-A CW	(09/18)	Additional Insured Endorsement (Automatic)
2	ZC-SPR-375-A CW	(09/18)	Property Damage Amended Endorsement
3	ZC-SPR-351-A CW	(09/18)	Additional Insured Endorsement (Scheduled)
4	ZC-SPR-2332-A CW	(07/23)	Critical Infrastructure Excluded Endorsement
5	ZC-SPR-1305-A CW	(03/24)	War or Cyber Operation Excluded Endorsement (No Attribution Clause)
6	M-ZCIP-BJD-091819-A-CAN (09/19)	(09/19)	Subsidiary Amended Definition with Retroactive Dates Endorsement

Important information for customers

This Policy contains a clause(s) that may limit the amount payable

COVERAGE UNDER SUBSECTION I.A. LIABILITY COVERAGES APPLIES ONLY TO LOSS AND DEFENCE COSTS FROM CLAIMS FIRST MADE AND REPORTED TO US DURING THE POLICY PERIOD OR EXTENDED REPORTING PERIOD, IF APPLICABLE, FOR WRONGFUL ACTS OCCURRING ON OR AFTER THE RETROACTIVE DATE AND BEFORE THE END OF THE POLICY PERIOD.

WHERE LEGALLY PERMISSIBLE, DEFENCE COSTS REDUCE AND MAY EXHAUST THE APPLICABLE LIMITS OF LIABILITY AND APPLY TO THE SELF-INSURED RETENTION/WAITING PERIOD.

THIS POLICY INCLUDES COVERAGE ONLY FOR INSURING AGREEMENTS INDICATED AS PURCHASED IN ITEM 4. BELOW.

In witness whereof, the Underwriter has caused this policy to be signed by its Head of Underwriting, Canada



Head of Underwriting, Canada
Authorized representative

Zurich Cyber Insurance Policy

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Zurich Cyber Insurance Policy

COVERAGE UNDER SUBSECTION I.A. LIABILITY COVERAGES APPLIES ONLY TO LOSS AND DEFENCE COSTS FROM CLAIMS FIRST MADE AND REPORTED TO US DURING THE POLICY PERIOD OR EXTENDED REPORTING PERIOD, IF APPLICABLE, FOR WRONGFUL ACTS OCCURRING ON OR AFTER THE RETROACTIVE DATE AND BEFORE THE END OF THE POLICY PERIOD.

WHERE LEGALLY PERMISSIBLE, DEFENCE COSTS REDUCE AND MAY EXHAUST THE APPLICABLE LIMITS OF LIABILITY AND APPLY TO THE SELF-INSURED RETENTION/WAITING PERIOD.

THIS POLICY INCLUDES COVERAGE ONLY FOR INSURING AGREEMENTS INDICATED AS PURCHASED IN ITEM 4. OF THE DECLARATIONS.

Wherever used in this Policy the words "you" and "your" refer to the **Named Insured** and its **Subsidiaries**. The words "we", "us", and "our" refer to the Company providing this insurance as shown in the Declarations.

Other words and phrases in this Policy that appear in bold have special meaning. Refer to Section III. DEFINITIONS.

Various provisions in this Policy restrict coverage. Read the entire Policy carefully to determine an **Insured's** rights, duties and what is and is not covered.

In consideration of payment of the premium and in reliance upon the statements made in the **Application**, which is made a part hereof, and subject to the Declarations, definitions, exclusions, limitations, conditions, provisions and other terms of this Policy (including any endorsement hereto), we and the **Insureds** agree as follows:

I. INSURING AGREEMENTS

A. LIABILITY COVERAGES

1. Security Liability Coverage

We shall pay on behalf of the **Insured** all **Loss** and **Defence Costs** on account of any **Claim** that directly results from a **Security Wrongful Act** that takes place on or after the Retroactive Date for Insuring Agreement I.A.1., as stated in Item 4. of the Declarations, and prior to the end of the **Policy Period**.

2. Privacy Liability Coverage

We shall pay on behalf of the **Insured** all **Loss** and **Defence Costs** on account of any **Claim** that directly results from a **Privacy Wrongful Act** that takes place on or after the Retroactive Date for Insuring Agreement I.A.2., as stated in Item 4. of the Declarations, and prior to the end of the **Policy Period**.

3. Media Liability Coverage

We shall pay on behalf of the **Insured** all **Loss** and **Defence Costs** on account of any **Claim** that directly results from a **Media Wrongful Act** that takes place on or after the Retroactive Date for Insuring Agreement I.A.3., as stated in Item 4. of the Declarations, and prior to the end of the **Policy Period**.

4. Regulatory Proceedings Coverage

We shall reimburse the **Insured** for all **Loss** and **Defence Costs** the **Insured** incurs in responding to a **Regulatory Proceeding** that directly results from a **Security Wrongful Act** or a **Privacy Wrongful Act**

that takes place on or after the Retroactive Date for Insuring Agreement I.A.4., as stated in Item 4. of the Declarations, and prior to the end of the **Policy Period**.

5. General Data Protection Regulations Proceedings Coverage

We shall reimburse the **Insured** for all **Loss** and **Defence Costs** the **Insured** incurs in responding to a **GDPR Proceeding** that directly results from a **Security Wrongful Act** or a **Privacy Wrongful Act** that takes place on or after the Retroactive Date for Insuring Agreement I.A.5., as stated in Item 4. of the Declarations, and prior to the end of the **Policy Period**.

6. Payment Card Industry Demand Coverage

We shall reimburse the **Insured** for all **Loss** and **Defence Costs** the **Insured** incurs in responding to a **PCI Demand** that directly results from a **Security Wrongful Act** or a **Privacy Wrongful Act** that takes place on or after the Retroactive Date for Insuring Agreement I.A.6., as stated in Item 4. of the Declarations, and prior to the end of the **Policy Period**.

B. FIRST PARTY COVERAGES

1. Breach Cost Coverage

We shall reimburse you for **Breach Costs** you incur that directly results from an actual or reasonably suspected **Security Event**, **Privacy Event**, or **Media Event** that is first discovered by the **Insured** during the **Policy Period**.

2. Business Income Loss Coverage

We shall pay you for **Business Income Loss** you sustain and reimburse you for any related **Mitigation and Extra Expense** you incur during the **Period of Restoration** due to a **Security Event**, **Privacy Event**, or **Media Event** that directly results in an **Interruption of Service** (except for any **Interruption of Service** provided under Subsection I.B.3. Dependent Business Income Loss Coverage below) that first occurs during the **Policy Period**.

3. Dependent Business Income Loss Coverage

We shall pay you for **Dependent Business Income Loss** you sustain and reimburse you for any related **Mitigation and Extra Expense** you incur during the **Period of Restoration** due to a **Security Event**, **Privacy Event**, or **Media Event** that directly results in an **Interruption of Service** that first occurs during the **Policy Period**.

4. System Failure Business Income Loss Coverage

We shall pay you for **Business Income Loss** you sustain and reimburse you for any related **Mitigation and Extra Expense** you incur during the **Period of Restoration** due to a **System Failure** that directly results in an **Interruption of Service** (except for any **Interruption of Service** provided under Subsection I.B.5. System Failure Dependent Business Income Loss Coverage below) that first occurs during the **Policy Period**.

5. System Failure Dependent Business Income Loss Coverage

We shall pay you for **Dependent Business Income Loss** you sustain and reimburse you for any related **Mitigation and Extra Expense** you incur during the **Period of Restoration** due to a **System Failure** that directly results in an **Interruption of Service** that first occurs during the **Policy Period**.

6. Digital Asset Replacement Expense Coverage

We shall reimburse you for **Digital Asset Replacement Expenses** you incur during a **Security Event** or a **Privacy Event** that first occurs during the **Policy Period**.

7. Cyber Extortion Coverage

We shall reimburse you for **Extortion Expenses** and **Extortion Payments** you actually paid that directly results from a **Cyber Extortion** that is first received during the **Policy Period**.

8. Reward Payment Coverage

We shall reimburse you for **Reward Payments** you actually paid to any person or entity, other than:

- a. your external auditor;
- b. an **Insured Person** who is your internal auditor; or
- c. an **Insured Person** who supervises or manages your external auditor,

that directly results from a **Cyber Extortion** that is first received during the **Policy Period**.

9. Reputational Damage Coverage

We shall reimburse you for **Reputational Damage Income Loss** you sustain during the **Period of Indemnity** that directly results from an **Adverse Media Event** concerning an actual or alleged **Wrongful Act** that:

- a. first occurs on or after the Retroactive Date for Insuring Agreement I.B.9. shown in Item 4. of the Declarations; and
- b. is first discovered by the **Insured** during the **Policy Period** or during the 60 days immediately following the termination of the **Policy Period**.

10. Social Engineering Funds Transfer Fraud Event Coverage

We shall reimburse you for the **Social Engineering Fraud Costs** you incur for a **Social Engineering Fraud Event** due to:

- a. electronic funds transfer from you or your bank account at a financial institution;
- b. theft by electronic means of **Money** or **Securities** from you or your bank account at a financial institution;
- c. theft by electronic means of **Money** or **Securities** from your corporate credit cards that is not reimbursed by your credit card provider;
- d. any fraudulent manipulation of electronic documentation while stored on **Your Computer System**; or
- e. phishing, vishing, or other social engineering attack against you,

committed by a **Fraudulent Third Party**, provided such **Social Engineering Fraud Event** first occurs during the **Policy Period**.

11. Social Engineering Theft of Funds Held In Trust Coverage

With respect to a bank account held by you in trust on behalf of a third party, we shall reimburse such third party for the **Social Engineering Fraud Costs** incurred for a **Social Engineering Fraud Event** due to theft of **Money** or **Securities** by electronic means committed by a **Fraudulent Third Party**, provided such **Social Engineering Fraud Event** first occurs during the **Policy Period**.

12. Social Engineering Theft of Personal Funds Coverage

We shall reimburse an **Executive Officer** for the **Social Engineering Fraud Costs** incurred for a **Social Engineering Fraud Event** as a direct result of any **Fraudulent Third Party** causing your agent, servant, or employee to access **Your Computer System** that results in theft of **Money** or **Securities** from a personal bank account of an **Executive Officer**, provided such **Social Engineering Fraud Event** first occurs during the **Policy Period**.

13. Claim Avoidance Coverage

Subject to our written consent, such consent shall not be unreasonably withheld, and provided that such consent is obtained prior to the incurrence of any fee, cost, charge, or expense, we may reimburse the **Insured** for **Claim Avoidance Costs** that the **Insured** incurs as a direct result of the **Insured's** reasonable investigation of a potentially covered **Wrongful Act** that takes place on or after the Retroactive Date for Insuring Agreement I.B.13., as stated in Item 4. of the Declarations, and prior to the end of the **Policy Period**.

II. DEFENCE AND SETTLEMENT

A. Liability Coverage Defence and Settlement

With respect to any **Liability Coverage Claim**, other than a **Regulatory Proceeding**, **GDPR Proceeding**, or **PCI Demand**, we have the right and duty to defend such **Claim**, even if the allegations are groundless, false or fraudulent. The **Insured** shall not incur any **Defence Cost**, settle any such **Claim**, or otherwise admit or assume any liability or obligation, without our consent, such consent shall not be unreasonably withheld. We shall not be liable for any **Defence Cost**, settlement, liability, or obligation to which we have not consented. However, such consent shall not be required if the aggregate **Loss** and **Defence Cost** is equal to or less than the applicable Self-Insured Retention/Waiting Period shown in Item 4. of the Declarations.

We may investigate any such **Liability Coverage Claim**, other than a **Regulatory Proceeding**, **GDPR Proceeding**, or **PCI Demand**, as we deem necessary and make any settlement or compromise of such **Claim** as we deem expedient with the **Insured's** consent, but our right and duty to defend ends when the applicable Limit of Liability is exhausted by payment of **Loss** or, where legally permissible, **Defence Costs**. If we recommend a settlement of any such **Claim** acceptable to the claimant and the **Insured** refuses to consent to such settlement then, subject to the applicable Limit of Liability, where legally permissible our liability for such **Claim** shall not exceed:

1. the amount for which such **Claim** could have been settled by us plus **Defence Costs** up to the date the **Insured** refused to settle such **Claim**; plus
2. 70% of any:
 - a. **Loss**; and
 - b. **Defence Costs**,

in excess of Subsection II.A.1. above incurred in such **Claim**. The remaining **Loss** and **Defence Costs** shall be borne by, or on behalf of, the **Insured** at its own risk.

B. Regulatory Proceeding, GDPR Proceeding, or PCI Demand Defence

We shall have the right, but not the duty, to defend any **Regulatory Proceeding, GDPR Proceeding, or PCI Demand**. The **Insured** shall not incur any **Defence Cost** in any **Regulatory Proceeding, GDPR Proceeding, or PCI Demand** without our consent, such consent shall not be unreasonably withheld. We shall not be liable for any **Defence Cost** to which we have not consented. We have the right to associate in the defence of, and may investigate, any such **Regulatory Proceeding, GDPR Proceeding, or PCI Demand** as we deem necessary.

III. DEFINITIONS

When used in this Policy, the terms below, whether in the singular or plural, are defined as follows:

- A. **Adverse Media Event** means a communication via any medium, including but not limited to television, print, radio, electronic, or digital form regarding previously non-public information specifically arising from an actual or alleged **Security Event, Privacy Event, or Media Event** that threatens to, or actually does, negatively and materially harm your reputation.
- B. **Adverse Media Waiting Period** means the corresponding amount of hours, as shown in Item 4. of the Declarations applicable to the Reputational Damage Coverage, beginning with the time that an **Adverse Media Event** is first discovered by the **Insured**.
- C. **Application** means:
1. the application or applications for this Policy or any other security and privacy, cyber, or media application provided to, and accepted by, us;
 2. the application or applications for all previous policies issued by us of which this Policy is providing the same or similar coverage and is in whole or in part a direct renewal or replacement; and
 3. all attachments and materials as submitted in conjunction with or incorporated in any application described in Subsections III.C.1. and III.C.2. of this definition.

The **Application** shall be deemed to be attached to and incorporated into this Policy.

D. **Breach Cost:**

1. means the reasonable and necessary fees, costs, charges, and expenses incurred by you (whether voluntarily or otherwise) within 24 months of the **Insured** first having received notice of a **Security Event, Privacy Event, or Media Event** for the purposes of retaining any one or more of an accountant, attorney, lawyer, forensics firm, payment card industry forensics investigator, public relations consultant, and other third party to:
 - a. conduct computer forensic analysis to investigate **Your Computer System** to determine:
 - (1) the cause and extent of such **Security Event, Privacy Event, or Media Event**;
 - (2) whether a **Wrongful Act** may be the cause of such **Security Event, Privacy Event, or Media Event**; or
 - (3) compliance with the Payment Card Industry Data Security Standards;
 - b. determine indemnification obligations under any written contract with respect to a **Wrongful Act** by a **Service Provider** in connection with such **Security Event, Privacy Event, or Media Event**;

- c. determine if you are obligated to notify potentially affected individuals or applicable regulatory agencies of such **Security Event, Privacy Event, or Media Event**;
 - d. effect compliance with any:
 - (1) **GDPR Proceeding**, or
 - (2) **Privacy Regulation** under the applicable **Privacy Regulation** most favourable to your potentially affected individuals;
 - e. notify your potentially affected individuals or applicable regulatory agencies of such **Security Event, Privacy Event, or Media Event** and establish new account numbers for your potentially affected individuals;
 - f. plan, implement, execute, and manage a public relations campaign to attempt to counter or minimize any actual or anticipated adverse effects of negative publicity from such **Security Event, Privacy Event, or Media Event** or to attempt to protect or restore your business reputation in response to negative publicity following such **Security Event, Privacy Event, or Media Event**;
 - g. provide credit and identification monitoring services, identification restoration services, and identification theft insurance (provided we shall have no obligation to apply for or furnish such insurance) for your potentially affected individuals in responding to such **Security Event, Privacy Event, or Media Event**;
 - h. provide call centre services to handle inquiries from your potentially affected individuals in responding to such **Security Event, Privacy Event, or Media Event**; or
 - i. provide **Healthcare Records Remediation Services** for your potentially affected individuals in responding to such **Security Event, Privacy Event, or Media Event**; and
2. does not include any:
- a. regular or overtime wage, salary, or fee of **Executive Officers** or your employees;
 - b. cost to comply with any injunctive or other non-monetary relief;
 - c. principal, interest, or other money paid or due as the result of any loan, lease, or extension of credit; or
 - d. tax, fine, sanction, penalty, or monetary assessment.

E. Business Income Loss:

- 1. means the:
 - a. net profit before income taxes that you would have earned or incurred during the **Period of Restoration** due to an **Interruption of Service**;
 - b. additional net loss before income taxes that you incur during the **Period of Restoration** due to an **Interruption of Service**; and
 - c. normal operating expenses incurred by you (including payroll) but solely to the extent that such operating expenses must necessarily continue during the **Period of Restoration** and would have been incurred had there been no **Interruption of Service**; and

2. does not include any:
 - a. contractual penalty;
 - b. cost or expense incurred to update, restore, replace, or improve a **Computer System** to a level beyond that which existed just before the **Interruption of Service**, unless such cost or expense is:
 - (1) standard technological advancements included within any newer **Computer System**, such as increased memory capacity or processing speed, or
 - (2) reasonably necessary to install a more secure and efficient version of the affected **Computer System**;
 - c. expense incurred to identify or remediate **Software** program errors or vulnerabilities;
 - d. legal cost or expense;
 - e. loss arising out of liability to any third party;
 - f. other consequential loss or damage; or
 - g. **Mitigation and Extra Expense**.

F. **Claim** means:

1. a written demand against the **Insured** for monetary damages or non-monetary or injunctive relief, including a written demand that the **Insured** toll or waive a statute of limitations;
2. a civil or administrative proceeding against the **Insured** for monetary damages or non-monetary or injunctive relief commenced by the service upon the **Insured** of a complaint or similar pleading, including any appeal thereof;
3. an arbitration or other alternative dispute resolution proceeding against the **Insured** for monetary damages or non-monetary or injunctive relief, commenced by the **Insured's** receipt of a request or demand for such proceeding, including any appeal thereof; or
4. solely with respect to the Coverages under the I.A.4., I.A.5., and I.A.6. Insuring Agreements, a **Regulatory Proceeding**, a **GDPR Proceeding**, or a **PCI Demand**.

G. **Claim Avoidance Cost** means all fees, costs, charges, and expenses incurred to avoid a **Claim** or to mitigate **Loss** or **Defence Costs** under this Policy.

H. **Client** means a customer of the **Insured** to whom you provide goods or services pursuant to a written contract, a written agreement, or for a fee.

I. **Computer System** means computer hardware and **Software**, and the **Electronic Data** stored thereon, as well as associated input and output devices, data storage devices or other computer peripheral devices (including, without limitation, wireless and mobile devices), networking equipment, telephone systems, components, firmware and electronic backup facilities, including systems accessible through the internet, intranets, extranets, or virtual private networks. **Computer System** also means any of the foregoing that are part of an Industrial Control System.

J. **Consumer Redress Fund** means any sum of money the **Insured** is legally required to deposit in a fund for the payment of consumer claims due to a settlement of, or an adverse judgement in, a **Regulatory Proceeding** or a **GDPR Proceeding**.

- K. **Content** means words, numbers, images, graphics, ideas, data, text, sounds, images, or similar forms of expression, including but not limited to the following, in whole or excerpt form:
1. books, poetry, lyrics, papers, essays, correspondence, newsletters, newspapers, magazines, scripts, plays, **Software**, **Software** documentation and manuals, encyclopedias, dictionaries, business records, or research materials;
 2. recorded music, live music, film, television and radio excerpts, commercials, voiceovers, sound effects, or speeches;
 3. television broadcasts, sports footage, professional or amateur videos, or animated and motion pictures;
 4. pictures, graphics, sculptures, tables, charts, diagrams, photographs, posters, maps, paintings, drawings, cartoons, cartoon characters, statues, works of fine art, display advertisements, or architectural drawings; or
 5. **Software** code and source code.
- L. **Cyber Extortion** means:
1. a reasonably credible threat or connected series of threats made without the cooperation of an **Executive Officer** to:
 - a. introduce **Malicious Code** into a **Computer System**;
 - b. commence a **Denial of Service Attack**;
 - c. disseminate, divulge, or improperly utilize any **Personal Information** or **Protected Information** taken as a result of the **Unauthorized Use** of or the **Unauthorized Access** to **Your Computer System**; or
 - d. encrypt or otherwise make unavailable **Electronic Data**,unless an **Extortion Payment** is received from you or on your behalf in return for the elimination, mitigation, or removal of such threat; and
 2. a threat or connected series of threats related to any of the acts in Subsection III.L.1. above that have already commenced.
- M. **Cyberterrorism** means the use of information technology to execute attacks or threats against **Your Network Security** by any person or group, whether acting alone, or on behalf of, or in connection with, any individual, organization, or government, with the intention to:
1. cause harm;
 2. intimidate any person or entity; or
 3. cause destruction or harm to critical infrastructure or data,
- in furtherance of financial, social, ideological, religious, or political objectives.
- N. **Daily Cap** means the maximum indemnity available for any 24 hour period under Subsection I.B.9. Reputational Damage Coverage, which amount is CAD \$1,000,000.

- O. **Defence Cost** means reasonable and necessary costs, charges, fees (including but not limited to attorneys' fees, legal fees, and experts' fees) and expenses (other than regular or overtime wages, salaries, fees, bonuses or stock options, or any other form of compensation of the **Insured Persons** or the directors, officers or employees of the **Insured**) incurred by or on behalf of the **Insured** in defending or investigating **Claims** under this Policy, as well as the premium for any appeal, attachment or similar bonds, provided that we shall have no obligation to apply for or furnish such bonds. **Defence Costs** do not include any **Loss** or **First Party Cost**.
- P. **Denial of Service Attack** means a malicious attack that is designed to slow or completely interrupt access to a **Computer System** or website.
- Q. **Dependent Business Income Loss** means the **Business Income Loss** sustained by you as a direct result of an **Interruption of Service** to a **Service Provider's Computer System**, but only if such **Interruption of Service** would have been covered under this Policy if such **Service Provider** had been you, applying the same terms and conditions herein.
- R. **Digital Asset** means **Electronic Data, Software**, audio files, and image files stored on **Your Computer System**, and the capacity of such **Computer System**. **Digital Asset** does not include accounts, bills, evidences of debts, money, valuable papers, records, abstracts, deeds, manuscripts, or other documents (except as they have been converted to **Electronic Data**, and then only in that form).
- S. **Digital Asset Replacement Expense:**
1. means the reasonable and necessary expenses you incur to:
 - a. replace, restore, reconstitute, or recollect **Digital Assets** from written records; and
 - b. partially or fully match **Electronic Data**,

due to their corruption or destruction, or due to any disaster recovery or computer forensic investigation efforts, and
 2. does not include:
 - a. any cost or expense to correct any deficiency or problem with any **Computer System** or to identify or remediate **Software** errors or vulnerabilities;
 - b. any cost to update, replace, upgrade, restore, maintain or in any way improve any **Computer System**, unless such cost or expense is:
 - (1) standard technological advancements included within any newer **Computer System**, such as increased memory capacity or processing speed; or
 - (2) reasonably necessary to install a more secure and efficient version of the affected **Computer System**;
 - c. any cost or expense incurred to research and develop **Digital Assets**, including trade secrets;
 - d. the economic or market value of **Digital Assets**, including trade secrets; or
 - e. any consequential loss or damage.
- T. **Electronic Data** means information that exists in electronic form, including electronic **Personal Information** and electronic **Protected Information**. **Electronic Data** does not include **Software** or digital currency.

- U. **Event** means **Security Events, Privacy Events, Media Events, System Failures, Cyber Extortions, Adverse Media Events, or Social Engineering Fraud Events.**
- V. **Executive Officer** means any natural person serving in the position of a Chief Executive Officer, Chief Financial Officer, Chief Security Officer, Chief Technology Officer, Chief Information Officer, General Counsel, Risk Manager, or the functional equivalent of such positions.
- W. **Extended Reporting Period** means the period of extended coverage described in Section VII. Extended Reporting Period. The Automatic Extended Reporting Period and the Optional Extended Reporting Period, if purchased, shall be collectively referred to in this Policy as the **Extended Reporting Period**. The **Extended Reporting Period** does not reinstate or increase the Limits of Liability, nor extend the **Policy Period**.
- X. **Extortion Expense** means the reasonable and necessary expenses, including forensic expenses, incurred by you that are directly attributable to a **Cyber Extortion**.
- Y. **Extortion Payment** means monies, digital currencies, or other consideration paid, including the costs associated to obtain such monies, digital currencies, or other consideration, based on instructions from a third party whom you reasonably believe to be responsible for a **Cyber Extortion**; provided that:
 - 1. our consent is obtained prior to making such **Extortion Payments** that are in excess of the applicable Cyber Extortion Coverage Self-Insured Retention/Waiting Period shown in Item 4. of the Declarations; and
 - 2. such **Extortion Payments** are made in an effort to terminate the **Cyber Extortion**.
- Z. **First Party Cost** means **Breach Costs, Business Income Losses, Dependent Business Income Losses, Mitigation and Extra Expenses, Digital Asset Replacement Expenses, Extortion Expenses, Extortion Payments, Reward Payments, Reputational Damage Income Losses, Social Engineering Fraud Costs, and Claim Avoidance Costs.**
- AA. **First Party Coverage** means the Coverages offered under the following Insuring Agreements: Breach Cost Coverage, Business Income Loss Coverage, Dependent Business Income Loss Coverage, System Failure Business Income Loss Coverage, System Failure Dependent Business Income Loss Coverage, Digital Asset Replacement Expense Coverage, Cyber Extortion Coverage, Reward Payment Coverage, Reputational Damage Coverage, Social Engineering Funds Transfer Fraud Event Coverage, Social Engineering Theft of Funds Held in Trust Coverage, Social Engineering Theft of Personal Funds Coverage, and Claim Avoidance Coverage.
- AB. **Fraudulent Third Party** means any person or entity other than the **Insured, Client, or Vendor** fraudulently impersonating:
 - 1. an **Insured**;
 - 2. a **Client**;
 - 3. a **Vendor**; or
 - 4. the financial institution of an **Insured, Client, or Vendor**,
 for the purposes of obtaining an unauthorized transfer of **Money or Securities**.
- AC. **GDPR** means the *General Data Protection Regulation (Regulation (EU) 2016/679)* and any amendment thereto. **GDPR** shall also include any state, provincial, territorial, local, or federal regulations enacted in furtherance of or pursuant to implementation of the *General Data Protection Regulation (Regulation (EU) 2016/679)* and any amendment thereto.

- AD. **GDPR Proceeding** means a formal investigation of or an administrative adjudication proceeding against an **Insured** concerning the **GDPR** by an administrative or regulatory agency, including an appeal thereof, commenced by the **Insured's** receipt of a subpoena, investigative demand, complaint or similar document.
- AE. **Healthcare Records Remediation Service** means the following services:
1. conducting credit and non-credit investigations to identify fraudulent use of protected health information;
 2. establishing a hotline for your potentially affected individuals in compliance with *Health Information Technology for Economic and Clinical Health Act* (HITECH) (U.S.) requirements, or the requirements of any similar Canadian federal, provincial or territorial law, act, statute or regulation; and
 3. conducting healthcare identity restoration services for your potentially affected individuals.
- AF. **Insured** means you and the **Insured Persons**.
- AG. **Insured Person**:
1. means any natural person who has been, now is, or shall be:
 - a. an **Executive Officer**, your employee, temporary employee, volunteer, applicant for employment, or intern acting in such capacity or, with respect to a **Subsidiary** incorporated outside of the United States or Canada, the functional equivalent of an **Executive Officer**, your employee, temporary employee, volunteer, applicant for employment, or intern acting in such capacity;
 - b. your independent contractor other than a **Service Provider**, but solely with respect to a **Wrongful Act** committed within the scope of such person's duties on behalf of you performed pursuant to a written contract with you; or
 - c. a spouse or domestic partner (as defined under any applicable law or formal program established by you) of any person identified in Subsection III.AG.1.a. above, but solely if a **Claim** made against such person identified in Subsection III.AG.1.a. is also made against such spouse or domestic partner due to:
 - (1) such spouse's or domestic partner's status as a spouse or domestic partner of the person identified in Subsection III.AG.1.a.; or
 - (2) such spouse's or domestic partner's ownership interest in property that the claimant seeks as recovery for alleged **Wrongful Acts** of the person identified in Subsection III.AG.1.a.,provided, however, **Insured Person** shall not include a lawful spouse or domestic partner with respect to a **Claim** against that spouse or domestic partner for his or her own **Wrongful Acts**; and
 2. shall also include the estates, heirs, legal representatives or assigns of any person identified in Subsection III.AG.1. who is deceased, incompetent, insolvent or bankrupt, but only for a **Claim** arising solely out of their status as such.
- AH. **Interruption of Service** means the actual and measurable interruption, suspension, failure, degradation or delay in the performance of **Your Computer System**. **Interruption of Service** also means a voluntary shutdown of **Your Computer System** when such action is taken to minimize, avoid or reduce **Unauthorized Access** or **Unauthorized Use**.
- AI. **Liability Coverage** means the Coverages offered under the following Insuring Agreements: Security Liability Coverage, Privacy Liability Coverage, Media Liability Coverage, Regulatory Proceedings Coverage, General Data Protection Regulations Proceedings Coverage, and Payment Card Industry Demand Coverage.

AJ. **Loss:**

1. means any amount, including judgements and settlements, pre- and post-judgement interest, the **Insured** is legally obligated to pay as the result of a **Claim** against the **Insured**. **Loss** includes punitive, exemplary or multiple damages, to the extent such damages are insurable under the internal laws of any applicable jurisdiction most favourable to the **Insured**, including without limitation the jurisdiction in which we are located or the **Insured**, this Policy, or such **Claim** is located;
2. also means a **Consumer Redress Fund**, solely with respect to Coverage afforded under the Regulatory Proceedings Coverage and the General Data Protection Regulations Proceedings Coverage Insuring Agreements; and
3. does not include:
 - a. **Defence Costs**;
 - b. the loss, offset or return of fees, commissions, royalties, bonuses, or profits by the **Insured**, or the cost to re-perform any service;
 - c. the cost to comply with any injunctive or other non-monetary relief;
 - d. the cost to design, upgrade, maintain, or improve a **Computer System**, including correcting any deficiencies or problems;
 - e. principal, interest, or other moneys paid or due as the result of any loan, lease, or extension of credit;
 - f. taxes, fines, sanctions, penalties, or monetary assessments, unless such taxes, fines, sanctions, penalties, or monetary assessments:
 - (1) are imposed pursuant to **Privacy Regulations**; or
 - (2) result from a **Regulatory Proceeding**, a **GDPR Proceeding**, or a **PCI Demand**; or
 - g. **First Party Costs**.

AK. **Malicious Code** means unauthorized, corrupting, or harmful **Software**, including but not limited to computer viruses, Trojan horses, keystroke loggers, cookies, spyware, adware, worms, and logic bombs.

AL. **Media Event** means any:

1. libel, slander, trade libel, or disparagement resulting from **Media Publishing** that defames a person or organization or disparages a person's or organization's goods, products, or services;
2. plagiarism, piracy, or the misappropriation or unauthorized use of advertising ideas, advertising material, titles, literary or artistic formats, styles, performances, names, or likenesses resulting from **Media Publishing** activities;
3. violation of the right of privacy or seclusion or right of publicity of any person other than an **Insured Person** resulting from **Media Publishing** that publicly discloses private facts relating to such person or commercially appropriates such person's name or likeness;
4. infringement of a copyright, title, slogan, trademark, trade name, trade dress, mark, service mark, or service name including, without limitation, infringement of domain name, deep-linking, or framing, resulting from **Media Publishing** activities;

5. unauthorized use of titles, formats, performances, style, characters, plots, or other protected material, resulting from **Media Publishing** activities; or
6. negligence with respect to the **Insured's** creation or dissemination of **Content**.

AM. **Media Publishing:**

1. means:
 - a. creating, publishing, disseminating, uttering, releasing, gathering, transmitting, producing, or other distributing of **Content** on behalf of the **Insured** or by the **Insured** on behalf of others, by any means, including but not limited to the following forms: print, music, film, directories, broadcasting, webcasting, or telecasting, through any medium or **Social Network**;
 - b. advertising, through any medium or **Social Network**, that consists of publicity or promotion on the **Insured's** behalf; and
2. does not include:
 - a. any **Software** or **Software** technology used to deliver, display or process such information in Subsection III.AM.1.; or
 - b. any actual product or service that is the subject of such information in Subsection III.AM.1.

AN. **Media Wrongful Act** means any actual or alleged act, error, omission, neglect or breach of duty by an **Insured**, someone for whom you are legally responsible, or a **Service Provider**, that results in a **Media Event**.

AO. **Mitigation and Extra Expense:**

1. means the reasonable and necessary expenses:
 - a. incurred by you during the **Period of Restoration** to identify, minimize, avoid, or reduce an **Interruption of Service**, provided that such expenses are over and above your normal operating and payroll expenses and do not exceed the amount of loss that otherwise would have been payable as **Business Income Loss** or **Dependent Business Income Loss**; and
 - b. incurred by you, either during or after the **Period of Restoration**, in order to determine your net profit or loss and expenses covered under Business Income Loss Coverage, Dependent Business Income Loss Coverage, System Failure Business Income Loss Coverage, or System Failure Dependent Business Income Loss Coverage; and
2. does not include any:
 - a. cost or expense to correct any deficiency or problem with any **Computer System** or to remediate **Software** errors or vulnerabilities;
 - b. cost or expense to update, restore, replace or improve any **Computer System** to a level beyond that which existed just before the **Interruption of Service**, unless such cost or expense is:
 - (1) standard technological advancements included within any newer **Computer System**, such as increased memory capacity or processing speed, or
 - (2) reasonably necessary to install a more secure and efficient version of the affected **Computer System**;
 - c. contractual penalty; or

- d. **Loss, Defence Cost, Breach Cost, Business Income Loss, Dependent Business Income Loss, Digital Asset Replacement Expense, Extortion Expense, Extortion Payment, Reward Payment, Reputational Damage Income Loss, Social Engineering Fraud Cost, or Claim Avoidance Cost.**

AP. **Money** means currency, coins or bank notes in current use and having a face value; and traveller's cheques, registered checks, or money orders held for sale to the public.

AQ. **Named Insured** means the organization shown in Item 1. of the Declarations.

AR. **PCI Demand** means a written demand from either the Payment Card Industry Security Standards Council, payment card association, issuing bank, or acquiring bank alleging noncompliance with or violations of:

1. the Payment Card Industry Data Security Standard; or
2. a merchant services agreement in connection with the Payment Card Industry Data Security Standard.

AS. **Period of Indemnity** means the period of time beginning at the conclusion of the **Adverse Media Waiting Period** and ending at the earlier of either:

1. the date that the **Insured** discontinues to suffer a loss of net income; or
2. six months after the conclusion of the **Adverse Media Waiting Period** and not limited by the expiration of the **Policy Period**.

AT. **Period of Restoration** means the period from the date and time that you are first impacted after a **Computer System** suffers an **Interruption of Service** to the date and time you are returned to substantially the level of operation that had existed prior to such **Interruption of Service**. In no event shall the **Period of Restoration** exceed 180 days.

AU. **Personal Information:**

1. means:
 - a. any information from which an individual may be uniquely and reliably identified or contacted, including but not limited to an individual's name, telephone number, email address, social insurance number, social security number, medical or healthcare data or other protected health information, biometric record, driver's licence number, state, provincial, or territorial identification number, account number, credit card number, debit card number, or access code or password that would permit access to that individual's financial account;
 - b. any other non-public personal information as defined in **Privacy Regulations**; and
 - c. all personal data as defined by the **GDPR** in connection with a **GDPR Proceeding**; and
2. with the exception of personal data as defined by the **GDPR**, does not include information lawfully available to the general public for any reason, including but not limited to information from federal, state, provincial, territorial, municipal, or other local government records.

AV. **Policy Period** means the period of time shown in Item 2. of the Declarations or any shorter period resulting from a termination of this Policy.

AW. **Pollutants** means any substance located anywhere in the world exhibiting any hazardous characteristics as defined by, or identified on a list of hazardous substances issued by, the United States Environmental Protection Agency or a federal, state, provincial, territorial, county, municipality or locality counterpart thereof. **Pollutants** shall also mean any other air emission, odour, waste water, oil or oil products, infectious or medical

waste, asbestos or asbestos products, silica, noise, fungus (including mould, mildew and any mycotoxin, spore, scent or byproduct produced or released by any fungus, but not any fungus intended by the **Insured** for consumption) and electric or magnetic or electromagnetic field. Such matters shall include, without limitation, solids, liquids, gaseous, thermal, biological, nuclear or radiological irritants, contaminants or smoke, soot, fumes, acids, alkalis, chemicals, or waste materials.

AX. **Privacy Event** means:

1. the loss, theft, or unauthorized disclosure of **Protected Information** or **Personal Information** in the care, custody, or control of any **Insured**, someone for whom you are legally responsible, or a **Service Provider**;
2. a violation of any **Privacy Regulation**;
3. a violation of the **GDPR**; or
4. the unauthorized or wrongful collection, retention, or use of **Personal Information**.

AY. **Privacy Regulation**:

1. means any of the following statutes, including any regulation thereunder, associated with the control and use of personally identifiable financial, medical, or other sensitive information:
 - a. *Health Information Technology for Economic and Clinical Health Act (HITECH) (American Recovery and Reinvestment Act of 2009)* (U.S.);
 - b. *Health Insurance Portability and Accountability Act of 1996* (Public Law 104-191) (U.S.);
 - c. *Gramm-Leach Bliley Act of 1999* (U.S.);
 - d. *California Security Breach Notification Act (CA SB 1386), CA AB 211 and CA SB 541* (U.S.);
 - e. Section 5(a) of the *Federal Trade Commission Act (15 U.S.C. 45(a))* (U.S.), but solely for alleged unfair or deceptive acts or practices in or affecting commerce;
 - f. *Massachusetts 201 CMR 17* (U.S.);
 - g. the Identity Red Flags under the *Fair and Accurate Credit Transactions Act of 2003* (U.S.);
 - h. *Driver's Privacy Protection Act (18 U.S.C. § 2721-2725)* (U.S.);
 - i. *Privacy Act, R.S.C. 1985., c. P-21* (Canada);
 - j. *Personal Information Protection and Electronic Documents Act (PIPEDA), S.C. 2000, c. 5* (Canada);
 - k. *Personal Information Protection Act, S.B.C. 2003, c 63* (Canada);
 - l. *An Act Respecting the Protection of Personal Information in the Private Sector, R.S.Q.c. p-39-1 [S.Q. 1993, c.17]* (Canada);
 - m. *Personal Information Protection Act, S.A. 2003, c. P-6.5* (Canada);
 - n. *Personal Health Information Protection Act, 2004, S.O. 2004, c. 3, Sch. A* (Canada);
 - o. *Illinois Biometric Information Privacy Act 740 ILCS 14/1 (2008)*;

- p. any state, provincial, territorial, municipal, federal, or foreign identity theft or privacy protection statute, regulation, or directive that is similar to any of III.AY.1.a. to III.AY.1.o. above; and
 - q. any amendment, addition, or replacement of any statute, ordinance, regulation, rule, or directive shown in III.AY.1.a. to III.AY.1.p. above; and
 - 2. does not include the **GDPR**.
- AZ. **Privacy Wrongful Act** means any actual or alleged act, error, omission, neglect, or breach of duty by an **Insured**, someone for whom you are legally responsible, or a **Service Provider**, that results in a **Privacy Event**.
- BA. **Professional Service** means those acts or services requiring specialized knowledge, skill, or professional judgement that the **Insured** renders to others pursuant to a written agreement and for a fee or other consideration.
- BB. **Property Damage** means physical injury to tangible property, including all resulting loss of use of that property, or loss of use of tangible property that has not been physically injured; provided, however, **Property Damage** does not mean corruption, loss or destruction of **Electronic Data**.
- BC. **Protected Information** means confidential corporate information (including first party corporate information) not available or known to the general public that is in the care, custody, or control of any **Insured**, someone for whom you are legally responsible, or a **Service Provider**.
- BD. **Regulatory Proceeding** means a formal investigation of, or an administrative adjudicative proceeding against, an **Insured** by an administrative or regulatory agency or similar governmental body, including an appeal thereof, commenced by the **Insured's** receipt of a subpoena, investigative demand, complaint or similar document. **Regulatory Proceeding** does not include a **GDPR Proceeding** or a **PCI Demand**.
- BE. **Reputational Damage Income Loss**:
- 1. means the net profit before income taxes that you are prevented from earning, or the additional net loss before income taxes that you incur, due to:
 - a. termination of your service contracts with one or more of your **Clients**;
 - b. reduction in the value of your business and brands; or
 - c. both 1.a. and 1.b. of this definition,
 arising directly from an **Adverse Media Event** concerning an actual or alleged **Security Event** or **Privacy Event**; and
 - 2. does not include any:
 - a. contractual penalty;
 - b. expense incurred to identify or remediate **Software** program errors or vulnerabilities;
 - c. **Loss** or **Defence Cost**;
 - d. cost resulting from an actual interruption or suspension of an **Insured's** business directly caused by a **Security Event**, a **System Failure**, a **Privacy Event**, or a **Media Event**;
 - e. legal cost or expense;

- f. loss arising out of liability to any third party;
- g. fee or expense for the services of a public relations firm, crisis management firm or law firm to advise an **Insured** on minimizing the harm to an **Insured's** brand or reputation, or restoring public confidence in an **Insured**;
- h. other consequential loss or damage; or
- i. **Breach Cost**.

BF. **Reward Payment** means any amount, consented to by us prior to it being offered by you, for information that leads to the arrest and conviction of any individual committing or trying to commit any illegal act related to a **Cyber Extortion**.

BG. **Securities** means an instrument of investment or contract in the form of a document, such as a stock certificate or bond, providing evidence of its ownership.

BH. **Security Event** means any:

1. **Unauthorized Access** to;
2. **Unauthorized Use** of;
3. physical theft by a person other than an **Insured** of;
4. introduction of **Malicious Code** into; or
5. **Denial of Service Attack** upon,

Your Computer System causing a breach of **Your Network Security** that results in:

- a. an **Interruption of Service**;
- b. the theft, alteration, destruction, loss, or unauthorized release of **Electronic Data** on **Your Computer System**;
- c. the denial of an authorized user's access to **Your Computer System**, unless such denial of access is caused by a mechanical or electrical failure outside the control of the **Insured**;
- d. the participation by **Your Computer System** in a **Denial of Service Attack** or digital currency mining directed against a third party's **Computer System**;
- e. the transmission of **Malicious Code** from **Your Computer System** to a third party's **Computer System**; or
- f. the alteration, corruption or destruction of **Digital Assets** or **Protected Information**.

BI. **Security Wrongful Act** means any actual or alleged act, error, omission, neglect, or breach of duty by an **Insured**, someone for whom you are legally responsible, or a **Service Provider**, that results in a **Security Event**.

BJ. **Service Provider** means a business you do not own, operate, or control, but that you hire for a fee pursuant to a written contract to perform services related to the conduct of your business, including but not limited to:

1. maintaining, managing, or controlling **Computer Systems**;

2. hosting or facilitating your internet website; or
3. providing administrative functions, human relations, marketing or other outsourced services to you.

BK. **Social Engineering Fraud Cost** means the **Money** or **Securities** transferred by the **Insured** during a **Social Engineering Fraud Event**.

BL. **Social Engineering Fraud Event** means the transfer of:

1. your **Money** or **Securities**; or
2. the **Money** or **Securities** of an **Executive Officer** solely with respect to coverage provided under Subsection I.B.12. Social Engineering Theft of Personal Funds Coverage,

to a person, or an account, beyond the **Insured's** control by an employee who is authorized by you to transfer **Money** or **Securities**, or by an employee who is authorized to instruct other employees to transfer **Money** or **Securities**, provided:

- a. such employee is acting in good faith reliance upon a verbal, written, or electronic instruction by a **Fraudulent Third Party** that was purported to be legitimate transfer instructions but, in fact, was fraudulent;
- b. such employee made reasonable attempts to verify the transfer instructions; and
- c. such **Fraudulent Third Party** was acting without the knowledge, authorization, or consent of the **Insured, Client, or Vendor**.

BM. **Social Network** means any website that allows multiple users to:

1. publish **Content**; or
2. disseminate **Content** electronically to other users.

Such **Content** may include public or private messages, text, images, or video. A **Social Network** does not include any website hosted by any **Insured** or hosted on behalf of any **Insured**.

BN. **Software** means operations and applications, codes and programs by which **Electronic Data** are electronically collected, transmitted, processed, stored, or received. **Software** does not include **Electronic Data**.

BO. **Subsidiary** means, subject to Subsection VIII.I. Material Changes, any organization, including non-profit/501(c)3 entities, and including, but not limited to, any limited liability company, while more than 50% of the outstanding voting securities or voting rights representing the present right to vote for election of directors or equivalent executives of such organization is owned or controlled, directly or indirectly, in any combination, by the **Named Insured**.

BP. **System Failure** means:

1. an accidental, unintentional, or negligent act or an error or omission committed by the **Insured** or the **Service Provider** in the course of:
 - a. data processing, programming, maintenance, service, conversion, modifying, handling, developing, or maintaining **Electronic Data** or **Software**; or
 - b. operating, maintaining, or repair of **Computer Systems**,

including the collection, compilation, processing, warehousing, mining, storage, or management of data; and

2. the physical theft of hardware, or components thereof, controlled by you on which **Electronic Data** is stored, by a person other than an **Insured**, from a premises occupied and controlled by you.

BQ. **Takeover** means:

1. the acquisition by any person or entity or affiliated group of persons or entities of 50% or more of the **Named Insured's** issued and outstanding voting securities representing the present right to vote for the election of the **Named Insured's** directors;
2. the acquisition, divestiture, or sale of more than 50% of your assets or liabilities (as reflected in the **Named Insured's** most recent consolidated financial statement) by or to any person or entity or affiliated group of persons or entities;
3. the appointment of a receiver, conservator, trustee, liquidator, rehabilitator, or any similar official for or with respect to the **Named Insured**; or
4. the **Named Insured's** merger with or consolidation into any other entity such that the **Named Insured** is not the surviving entity.

BR. **Unauthorized Access** means the gaining of access to a **Computer System** by an unauthorized person or persons, or by an authorized person or persons in an unauthorized manner.

BS. **Unauthorized Use** means the use of a **Computer System** by an unauthorized person or persons or by an authorized person or persons in an unauthorized manner.

BT. **Vendor** means any entity, company, organization, or individual who has a written agreement to provide goods or services to the **Insured**.

BU. **Waiting Hours Retention** means the dollar amount of **Business Income Loss**, **Dependent Business Income Loss**, and **Mitigation and Extra Expenses** incurred by an **Insured** during the Self-Insured Retention/Waiting Period shown in Item 4. of the Declarations for the applicable Insuring Agreement.

BV. **Wrongful Act** means a **Media Wrongful Act**, a **Security Wrongful Act**, or a **Privacy Wrongful Act**.

BW. **Your Computer System** means a **Computer System**:

1. you lease, own or operate;
2. a **Service Provider** operates;
3. owned by your employees and operated on behalf of you; or
4. owned by the employees of the **Service Provider**, but only while such **Computer System** is operated on behalf of you or such **Service Provider**,

to provide services to you.

BX. **Your Network Security** means the use of hardware, **Software**, firmware and written security policies and procedures by the **Insured**, or by others on your behalf, to protect against **Unauthorized Access** to, or the **Unauthorized Use** of, **Your Computer System** including the use of **Your Computer System** in a **Denial of Service Attack**.

IV. EXCLUSIONS

This Policy does not apply to **Loss, Defence Costs**, or **First Party Costs** on account of any **Claim** or **Event**:

A. Bodily Injury, Mental Anguish or Property Damage

based upon, arising out of, or attributable to any actual or alleged:

1. **Property Damage**; or
2. bodily injury, mental anguish, emotional distress, pain and suffering, shock, or humiliation, sickness, disease, or death of any person; provided, however, this exclusion does not apply to mental anguish, emotional distress, pain and suffering, or shock resulting from a **Privacy Event**.

B. Breach of Contract

based upon, arising out of, or attributable to any contractual liability or obligation or any breach of any contract, warranty, guarantee or promise, including any liability of others assumed by any **Insured**; provided, however, this exclusion shall not apply:

1. if such liability would have attached to the **Insured** even in the absence of such contract, warranty, guarantee or promise;
2. to any obligation to maintain the confidentiality or security of **Personal Information** or **Protected Information**, solely if such liability arises out of a **Wrongful Act**; or
3. to any obligation to comply with the Payment Card Industry Data Security Standard under a merchant services agreement or similar contract.

C. Breach of Warranty

based upon, arising out of, or attributable to any actual or alleged:

1. breach of any warranty, guarantee, or promise of fitness or suitability, whether express, implied, constructive, oral or written;
2. inaccurate, inadequate, or incomplete description of the price of your goods, products or services; or
3. failure of any good, product or service to conform with an advertised quality or performance,

provided, however, that this exclusion does not apply to any:

- a. **Loss** or **Defence Cost** resulting from any **Claim** made against any **Insured**;
- b. **Breach Cost** you incur resulting from a **Security Event**, **Privacy Event**, or **Media Event**; or
- c. other amount claimed under any other Coverage that would exist even in the absence of such warranty, guarantee, or promise.

D. Disclosure of Fees and Guarantees

based upon, arising out of, or attributable to:

1. incomplete disclosure of the **Insured's** fees; or

2. any guarantee, representation or promise the **Insured** makes relating to contract price, costs, cost savings, return on investment or profitability, including the **Insured's** failure to meet cost guarantees, representations, or contract price.

E. Dishonest, Fraudulent, Criminal, Malicious, or Intentional Act

based upon, arising out of, or attributable to:

1. any dishonest, fraudulent, criminal, or malicious act or omission committed by an **Insured**;
2. any intentional or knowing violation of law committed by an **Insured**; or
3. any gaining of or the attempt to gain any profit, remuneration, or financial or non-financial advantage by an **Insured** to which the **Insured** was not legally entitled,

provided, however, we shall pay **Defence Costs** and defend **Claims** until there is a final and non-appealable judgement, adjudication, binding arbitration decision, or finding of fact against such **Insured** or an adverse admission under oath or plea of *nolo contendere* or no contest by such **Insured** that establishes such:

- a. dishonest, fraudulent, criminal or malicious act or omission;
- b. intentional or knowing violation of law; or
- c. gaining of or the attempt to gain profit, remuneration or advantage.

In the event of such final and non-appealable judgement, adjudication, binding arbitration decision, or finding of fact against such **Insured** or an adverse admission under oath or plea of *nolo contendere* or no contest by such **Insured**, where legally permissible, the **Insured** shall reimburse us for any **Defence Cost** paid by us on behalf of such **Insured** resulting from the **Claim**.

In applying this exclusion:

- (1) no such acts, omissions, violations, gains or attempted gains committed by an **Insured Person** shall be imputed to any other **Insured Person**, unless such acts, omissions, violations, gains or attempted gains were committed by, or knowledge thereof was possessed by, an **Executive Officer**; and
- (2) solely with respect to **First Party Coverages**, this exclusion only applies if such acts, omissions, violations, gains or attempted gains were committed by, or knowledge thereof was possessed by, an **Executive Officer**.

F. Downloading, Licensing, Advertising

solely with respect to Subsection I.A.3. Media Liability Coverage, based upon, arising out of, or attributable to:

1. the uploading or downloading of digitized music, movies, **Software**, or video games by persons who allegedly or actually failed to obtain valid licences with respect to such music, movies, **Software**, or video games;
2. licensing fees or royalties ordered, directed or agreed to be paid by the **Insured** pursuant to a judgement, arbitration award, settlement agreement or similar order or agreement, for the continued use of a person or entity's copyright, slogan, trademark, trade name, trade dress, service mark, service name, or other protected intellectual property; and
3. advertising services performed by the **Insured** on the **Insured's** internet website on behalf of others.

G. Electronic Communications

based upon, directly or indirectly arising out of, or attributable to any action or omission that violates or is alleged to violate:

1. the *Telephone Consumer Protection Act* (U.S.) (TCPA);
2. the *CAN-SPAM Act of 2003* (U.S.);
3. Canada's federal anti-spam legislative Act:

an Act to promote the efficiency and adaptability of the Canadian economy by regulating certain activities that discourage reliance on electronic means of carrying out commercial activities, and to amend the Canadian Radio-television and Telecommunications Commission Act, the Competition Act, the Personal Information Protection and Electronic Documents Act and the Telecommunications Act; and including, all the rules and regulations promulgated under it, any amendment of or addition to it and any aspects of other federal, provincial, territorial or municipal act, law or statute it amends;

4. the Canadian Radio-Television and Telecommunications Commission (CRTC) guidelines;
5. the Canadian Marketing Association's do-not-call list;
6. the *Fair Credit Reporting Act* (U.S.) (FCRA) and the *Fair and Accurate Credit Transactions Act* (U.S.) (FACTA);
7. any federal, state, provincial, territorial, or local statute, ordinance, regulation, or directive other than the items listed above in Subsections IV.G.1. to IV.G.6, or any other legal liability, at common law or otherwise, that addresses, prohibits, or limits the printing, dissemination, disposal, monitoring, collecting, recording, use of, sending, transmitting, communicating or distribution of material or information; or
8. any amendment, addition, or replacement of any statute, ordinance, regulation, rule, or directive shown in IV.G.1. to IV.G.7. above,

provided, however, this exclusion does not apply if such unsolicited electronic dissemination of faxes, electronic mail or other communications to multiple actual or prospective customers by the **Insured** or any other third party was caused by a **Malicious Code** or hacker.

H. Employment Related Practices

based upon, arising out of, or attributable to any actual or alleged wrongful refusal to hire, wrongful dismissal, discharge or termination of employment, violation of employment-related practices or policies, wrongful demotion, coercion, evaluation, reassignment or discipline, retaliation, discrimination, malicious prosecution or employment-related defamation, harassment, humiliation, invasion of privacy, defamation or infliction of emotional distress; provided, however, this exclusion shall not apply to any **Claim** by an individual for a **Privacy Event** relating to the unauthorized disclosure of such individual's **Personal Information**.

I. ERISA and Securities

based upon, arising out of, or attributable to any actual or alleged:

1. violation by an **Insured** of the *Employee Retirement Income Security Act of 1974* (U.S.) (ERISA), the *Canadian Pension Benefits Standards Act*, the *Ontario Pension Benefits Act, 1990*, or any other similar federal, state, provincial, territorial or municipal act;

2. violation by the **Insured** of the *Securities Act of 1933* (U.S.), the *Securities Exchange Act of 1934* (U.S.), the *Investment Company Act of 1940* (U.S.), the *Investment Advisors Act* (U.S.), the *Canadian Securities Act (Ontario)*, or any other foreign, federal, state, provincial, territorial, or local securities law;
3. violation by the **Insured** of any rule or regulation promulgated under the statutes listed in Subsection IV.I.1. or IV.I.2. above, or any other foreign, federal, state, provincial, territorial, or common law similar thereto;
4. deceptive or unfair trade practice, consumer fraud, false or deceptive advertising, or misrepresentation;
5. unfair competition, price fixing, restraint of trade, monopolization, consumer fraud, or other violation of the *Federal Trade Commission Act* (U.S.), the *Sherman Anti-Trust Act* (U.S.), the *Clayton Act* (U.S.), the *Competition Act* (Canada), or any other federal, state, provincial, territorial, local, or common law or rules or regulations involving antitrust, monopoly, price fixing, price discrimination, predatory pricing or restraint of trade, or otherwise protecting competition; or
6. any amendment, addition, or replacement of any statute, ordinance, regulation, rule, or directive shown in IV.I.1. to IV.I.5. above,

provided, however, this exclusion shall not apply to:

- a. a **Regulatory Proceeding** or a **GDPR Proceeding** that may constitute a violation of Section 5(a) of the *Federal Trade Commission Act (15 U.S.C. 45(a))* (U.S.), as amended, including a **Consumer Redress Fund** established in resolving such a **Regulatory Proceeding** or **GDPR Proceeding**; or
- b. an otherwise covered:
 - (1) **Claim** under Subsection I.A.; or
 - (2) **Breach Cost** under Subsection I.B.1.

J. Exceeding the Daily Cap

based upon, arising out of, or attributable to any part of the **Reputational Damage Income Loss** that exceeds the **Daily Cap**.

K. Government Seizure

based upon, arising out of, or attributable to:

1. seizure, confiscation, expropriation, or nationalization of a computer system; or
2. the destruction of a **Computer System** due to the seizure, confiscation, expropriation, or nationalization of such computer system,

by order of any United States or Canadian recognized governmental authority.

L. Insured vs. Insured

based upon, arising out of, or attributable to any **Claim** made by or on behalf of, or at the behest of, or for the benefit of, any **Insured** against any other **Insured**. This exclusion shall not apply to any **Claim** brought by:

1. any **Insured Person** in his or her capacity:
 - a. as your customer or **Client**; or

b. as your employee or independent contractor for a **Privacy Event** relating to the theft, loss, unauthorized access, or unauthorized disclosure of such employee's or independent contractor's **Personal Information**; or

2. an entity other than you if any **Insured Person** served as a director or officer of such entity at the time the **Wrongful Act** took place.

M. Intellectual Property

1. based upon, arising out of, or attributable to any actual or alleged theft, infringement, dilution, violation or misappropriation of any patent or trade secret provided, however, this exclusion shall not apply to the extent any **Claim** alleges an inadvertent disclosure of a trade secret that constitutes a **Privacy Event**.

2. except with respect to Subsection I.A.3. Media Liability Coverage, based upon, arising out of, or attributable to any actual or alleged theft, infringement, dilution, violation or misappropriation of any copyright, service mark, trade name, trademark or other intellectual property of any third party.

N. Loss, Transfer or Theft

based upon, arising out of, or attributable to loss, transfer or theft of monies, securities, or tangible property of others in the care, custody, or control of the **Insured**; however, this exclusion does not apply to coverage under Subsection I.B.11. Social Engineering Theft of Funds Held In Trust Coverage.

O. Mechanical Failure

based upon, arising out of, or attributable to any mechanical or electrical failure, interruption or outage, however caused, including any electrical power interruption or surge, brownout, blackout, short circuit, over voltage, or power fluctuation or outage to gas, water, telephone, cable, satellite, telecommunications, the internet or any component thereof including hardware or **Software** or any other infrastructure; provided, however, this exclusion shall not apply to any failure, interruption, or outage of telephone, cable or telecommunications under the **Insured's** direct control that is the result of an **Insured's Wrongful Act** or a **Security Event** directed against **Your Computer Systems**.

P. Monetary Value

based upon, arising out of, or attributable to the monetary value of any transaction or change in value of any account, including but not limited to: electronic funds transfers, trading losses, trading liabilities, awards, points, coupons, earnings or other intangible property; however, this exclusion does not apply to any **Social Engineering Fraud Event**.

Q. Not Purchased

for coverage under any Insuring Agreement not indicated as purchased in Item 4. of the Declarations.

R. Physical Event

based upon, arising out of, or attributable to fire, smoke, explosion, lightning, wind, flood, earthquake, volcanic eruption, tidal wave, landslide, hail, act of God or any other physical event, however caused.

S. Pollution

based upon, arising out of, or attributable to:

1. the actual, alleged or threatened discharge, release, escape, seepage, migration, or disposal of **Pollutants** into or on real or personal property, water, or the atmosphere; or

2. any direction or request that any **Insured** test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize **Pollutants**, or any voluntary decision to do so.

T. Prior Notice or Pending or Previous Action

based upon, arising out of, or attributable to:

1. any fact, circumstance, or situation that has been the subject of any written notice given under any insurance policy or any policy of which this Policy is a direct or indirect renewal or replacement, or any policy expiring prior to the inception date of this Policy;
2. any act, error, omission, **Wrongful Act, Event**, fact, circumstance, or situation occurring prior to:
 - a. the inception date of this Policy or the inception date of the first policy in an uninterrupted series of privacy and security liability insurance policies continuously issued by us to you of which this Policy is a renewal, whichever inception date is earlier; or
 - b. the applicable Retroactive Date (if applicable) shown in Item 4. of the Declarations,

if on or before such earlier inception date or Retroactive Date (if applicable) any **Executive Officer** becomes aware or receives notification of a **Claim or Event**, or knew that such act, error, omission, **Wrongful Act, Event**, fact, circumstance, or situation could give rise to a **Claim or Event**; or
3. any written demand, action (or suit) or proceeding pending, or order, decree or judgement:
 - a. entered against any **Insured** on or prior to the effective date of this Policy or the effective date of any policy issued by us of which this Policy is a continuous renewal or replacement; or
 - b. alleged or derived from the same or substantially the same **Wrongful Act or Event** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of causally connected facts, circumstances, situations, events, transactions, or causes.

U. Product or Service Failure

based upon, arising out of, or attributable to:

1. the failure of the **Insured's** products, including **Software**, to perform the function, or serve the purpose, intended by any third party or any **Insured**; or
2. the rendering of or failure to render **Professional Services**,

however this exclusion shall not apply to any obligation to maintain the confidentiality or security of **Personal Information** or **Protected Information**, solely if such liability arises out of a **Wrongful Act**.

V. Taxes, Fines or Penalties

based upon, arising out of, or attributable to any tax, fine, penalty, or monetary assessment imposed:

1. by any self-regulating organization;
2. by the Payment Card Industry Security Standards Council or similar organization; or
3. due to any rule, program, by-law, policy, procedure, regulation, or requirement by any payment card company,

unless such taxes fines, sanctions, penalties, or monetary assessments:

- a. are imposed pursuant to **Privacy Regulations**, or
- b. result from a **Regulatory Proceeding**, a **GDPR Proceeding**, or a **PCI Demand**.

W. Violation of Disabilities Acts

based upon, arising out of, or attributable to any actual or alleged violation of the of the *Americans with Disabilities Act of 1990, 42 USC §§ 12101-12213 (2008)*(U.S.), the *Ontarians with Disabilities Act, 2001, S.O. 2001, c. 32*, or any similar federal, state, provincial, territorial, local or foreign statute, regulation, or common law, or any amendment, addition, or replacement of any statute, ordinance, regulation, rule, or directive shown in this exclusion.

X. Violation of Imposed Responsibilities, Obligations or Duties

based upon, arising out of, or attributable to any actual or alleged violation of the responsibilities, obligations or duties imposed by any of the following:

1. any law governing workers' compensation, unemployment insurance, Old Age Security, social security or disability benefits, or similar law;
2. the *Fair Labor Standards Act* (U.S.) (except the *Equal Pay Act* (U.S.)), the *Canada Labour Standards Regulations*, and any other law concerning wage and hour practices, including, but not limited to any **Claim** for off-the-clock work, failure to provide rest or meal periods, failure to reimburse expenses, improper classification of employees as exempt or non-exempt, failure to timely pay wages, conversions, unjust enrichment, or unfair business practices;
3. any law governing the rights of employees to engage in, or to refrain from engaging in, union or other collective activities, including but not limited to the *National Labor Relations Act* (U.S.), the *Canada Labour Code* (R.S.C., 1985, c. L-2), or the enforcement of any collective bargaining agreement;
4. the *Worker Adjustment and Retraining Notification Act* (U.S.);
5. the *Consolidated Omnibus Budget Reconciliation Act of 1985* (U.S.);
6. the *Occupational Safety and Health Act* (U.S.) or the *Canada Occupational Health and Safety Regulations* (SOR/86-304);
7. the *Racketeer Influenced and Corrupt Organizations Act* (U.S.);
8. the *Federal False Claims Act* (U.S.);
9. any rules or regulations promulgated under any of such statutes or laws shown in IV.Y.1. to IV.Y.8. above or similar provisions of any federal, state, provincial, territorial, local or foreign statutory law or common law; or
10. any amendment, addition, or replacement of any statute, ordinance, regulation, or directive shown in IV.Y.1. to IV.Y.9. above.

Y. War or Civil Unrest

based upon, arising out of, or attributable to:

1. war, including undeclared or civil war;

2. warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign, or other authority using military personnel or other agents; or
3. insurrection, rebellion, revolution, riot, usurped power, or action taken by governmental authority in hindering or defending against any of these,

however, this exclusion does not apply to **Cyberterrorism**. For the purpose of this exclusion, war shall also mean kinetic war.

Z. Without Insured Allegation

based upon, arising out of, or attributable to an **Adverse Media Event** that affects or refers to:

1. a general security issue;
2. an industry issue; or
3. any specific competitor issue,

without any specific allegation regarding the **Insured**.

V. LIMITS OF LIABILITY

A. Aggregate Policy Limit of Liability

Our maximum liability for all payments under all Coverages purchased under this Policy shall not exceed the amount shown in Item 3. of the Declarations as the Aggregate Policy Limit of Liability.

B. Liability Coverages Limits of Liability

Subject to Subsection V.A.:

1. Our maximum liability for all **Loss** and, where legally permissible, **Defence Costs** on account of all **Claims** for **Wrongful Acts** covered under each Insuring Agreement of Subsection I.A., LIABILITY COVERAGES as purchased and shown in Item 4. of the Declarations shall not exceed the respective Aggregate Limit of Liability shown in Item 4. of the Declarations for each such purchased Insuring Agreement.
2. Our maximum liability for all **Loss** and, where legally permissible, **Defence Costs** on account of each **Claim** for **Wrongful Acts** covered under each Insuring Agreement of Subsection I.A., LIABILITY COVERAGES as purchased and shown in Item 4. of the Declarations shall not exceed the respective Each **Claim/Event** Limit of Liability shown in Item 4. of the Declarations for each such purchased Insuring Agreement.
3. Our maximum liability for **Loss** and, where legally permissible, **Defence Costs** payable under the Payment Card Industry Demand Coverage Insuring Agreement Aggregate Limit of Liability as purchased and shown in Item 4. of the Declarations is part of and not in addition to the Regulatory Proceedings Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations.

C. First Party Coverages Limits of Liability

Subject to Subsection V.A.:

1. Our maximum liability for all **First Party Costs** on account of all **Events** covered under each Insuring Agreement of Subsection I.B., FIRST PARTY COVERAGES as purchased and shown in Item 4. of the Declarations shall not exceed the respective Aggregate Limit of Liability shown in Item 4. of the Declarations for each such purchased Insuring Agreement.

2. Our maximum liability for all **First Party Costs** on account of each **Event** covered under each Insuring Agreement of Subsection I.B., FIRST PARTY COVERAGES as purchased and shown in Item 4. of the Declarations shall not exceed the respective Each **Claim/Event** Limit of Liability shown in Item 4. of the Declarations for each such purchased Insuring Agreement.
3. Our maximum liability for any **First Party Cost** payable under the Dependent Business Income Loss Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations is part of and not in addition to the Business Income Loss Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations.
4. Our maximum liability for any **First Party Cost** payable under the System Failure Dependent Business Income Loss Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations is part of and not in addition to the System Failure Business Income Loss Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations.
5. Our maximum liability for any **First Party Cost** payable under the Reward Payment Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations is part of and not in addition to the Cyber Extortion Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations.
6. Our maximum liability for any **Reputational Damage Income Loss** is subject to the **Daily Cap** shown in Item 4. of the Declarations.
7. Our maximum liability for any **First Party Cost** payable under both the Social Engineering Theft of Funds Held In Trust Coverage and the Social Engineering Theft of Personal Funds Coverage Insuring Agreements Aggregate Limit of Liability shown in Item 4. of the Declarations are part of and not in addition to the Social Engineering Funds Transfer Fraud Event Coverage Insuring Agreement Aggregate Limit of Liability shown in Item 4. of the Declarations.

VI. SELF-INSURED RETENTIONS, WAITING PERIODS, SINGLE CLAIMS, AND SINGLE EVENTS

- A.
 1. Our liability for **Loss, Defence Costs, and First Party Costs** on account of each **Claim, Regulatory Proceeding, GDPR Proceeding, PCI Demand, or Event** under each Insuring Agreement shall apply only to that part of such **Loss, Defence Cost, and First Party Cost** in excess of the applicable Self-Insured Retention/Waiting Period shown in Item 4. of the Declarations for each such purchased Insuring Agreement.
 2. We shall have no obligation for any **Loss, Defence Cost, or First Party Cost** within such Self-Insured Retention/Waiting Period detailed in Subsection VI.A.1. We may, however, elect to pay all or any part of the Self-Insured Retention to effect a settlement of any matter covered hereunder and, upon notice of such action by us, the **Insured** must promptly reimburse us for the Self-Insured Retention paid by us. All Self-Insured Retention/Waiting Period amounts shall be borne by, or on behalf of, the **Insured** at their own risk.
- B. In the event more than one Self-Insured Retention/Waiting Period applies to any **Claim or Event**, the maximum total Self-Insured Retention/Waiting Period applicable to such **Claim or Event** shall be the largest of such applicable Self-Insured Retention/Waiting Period.
- C. With respect to the Insuring Agreements for Subsections I.B.2. to I.B.5., the applicable Self-Insured Retention/Waiting Period is the greater of:
 1. the applicable dollar Self-Insured Retention amount; or
 2. the **Waiting Hours Retention**,

set forth in Item 4. of the Declarations for the respective Insuring Agreement. The **Business Income Loss**, **Dependent Business Income Loss**, and **Mitigation and Extra Expense** applicable to the Self-Insured Retention/Waiting Period shall be computed as of the start of the **Interruption of Service**.

- D. No Self-Insured Retention/Waiting Period applies to the Insuring Agreement for Subsection I.B.8.
- E. With respect to the Insuring Agreement for Subsection I.B.9., we shall pay only **Reputational Damage Income Loss** in excess of the **Adverse Media Waiting Period**.
- F. All **Claims** arising out of the same **Wrongful Act** or associated **Regulatory Proceedings**, **GDPR Proceedings**, or **PCI Demands** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of causally connected facts, circumstances, situations, events, transactions or causes shall be deemed one **Claim**, and such **Claim** shall be deemed to be first made on the date the earliest of such **Claims** is first made, regardless of whether such date is before or during the **Policy Period**.
- G. All **Events** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of causally connected facts, circumstances, situations, events, transactions or causes shall be deemed one **Event**, and such **Event** shall be deemed to be first made on the date the earliest of such **Events** is first made, regardless of whether such date is before or during the **Policy Period**.

VII. EXTENDED REPORTING PERIOD

A. Automatic Extended Reporting Period

If we or the **Named Insured** cancels or does not renew this Policy, other than for nonpayment of premium, we shall provide an automatic extension of coverage for a period of 60 days immediately after the termination of the **Policy Period** with respect to any **Claim** first made against any **Insured** and reported to us in writing within such 60 day period (Automatic Extended Reporting Period), but only with respect to any **Wrongful Act** committed on or after the applicable Retroactive Date and before the earlier of a **Takeover**, if applicable, or the termination of the **Policy Period**. No additional premium shall be payable for such Automatic Extended Reporting Period.

B. Optional Extended Reporting Period

If we or the **Named Insured** cancels or does not renew this Policy, other than for nonpayment of premium, the **Named Insured** shall have the right, upon payment of the percentage shown in Item 5. of the Declarations of the annual premium of this Policy, to an extension of the coverage granted by this Policy for the additional number of years shown in Item 5. of the Declarations immediately following the termination of the **Policy Period** with respect to any **Claim** first made against any **Insured** and reported to us in writing within such period (Optional Extended Reporting Period), but only with respect to any **Wrongful Act** committed on or after the applicable Retroactive Date and before the earlier of a **Takeover**, if applicable, or the termination of the **Policy Period**.

This right of extension shall lapse unless written notice of such election, together with payment of the additional premium due, is given to us within 60 days following the effective date of cancellation or nonrenewal.

In the event of the purchase of the Optional Extended Reporting Period, the entire premium for the Optional Extended Reporting Period shall be deemed earned at its commencement.

- C. Any **Claim** first made during the **Extended Reporting Period**, if applicable, shall be considered made during the **Policy Period**. If the Optional Extended Reporting Period is purchased, the Automatic Extended Reporting Period shall be included within and not in addition to the Optional Extended Reporting Period, and we shall issue an endorsement that sets forth the extended period of coverage. A change in Policy terms, conditions, exclusions or premiums shall not be considered a nonrenewal for purposes of triggering the rights to the **Extended Reporting Period**.

VIII. GENERAL CONDITIONS AND LIMITATIONS

A. Alteration, Assignment, and Headings

No change in, modification of, or assignment of interest under this Policy shall be effective except when made by a written endorsement to this Policy that is signed by our authorized representative.

The titles and headings to the various sections, subsections, and endorsements of this Policy, as well as the schedule of endorsements attached to this Policy, are included solely for ease of reference and do not in any way limit coverage, expand coverage, or otherwise affect the provisions or existence of such sections, subsections, or endorsements.

B. Alternative Dispute Resolution (ADR)

We and the **Named Insured** shall submit any dispute or controversy arising out of or relating to this Policy to non-binding mediation. Unless otherwise agreed by the parties, such non-binding mediation shall be administered by the American Arbitration Association in accordance with its then-prevailing Commercial Mediation Rules.

If the dispute is not resolved in the mediation, then either party to the mediation may thereafter commence a judicial proceeding against the other party with respect to such dispute, provided that neither party may commence such a judicial proceeding prior to 90 days following termination of the mediation.

The parties to the mediation shall share equally the fees and expenses of the mediator as well as other common expenses of the mediation process.

C. Authorization Clause

By acceptance of this Policy, the **Named Insured** agrees to act on behalf of all **Insureds** with respect to termination of this Policy, paying premiums, receiving any return premium that may become due under this Policy, agreeing to endorsements, and giving or receiving of notices, including but not limited to notices for **Claims** or **Events** provided for in this Policy. All **Insureds** agree that the **Named Insured** shall act on their behalf.

No action shall lie against us unless, as a condition precedent thereto, the **Named Insured** or the **Insured**, or both the **Named Insured** and the **Insured**, have complied fully with all the terms of this Policy.

D. Bankruptcy

Bankruptcy or insolvency of the **Insured** or of the **Insured's** estate shall not relieve us of our obligations under this Policy nor deprive us of our rights or defences under this Policy.

In the event a liquidation or reorganization proceeding is commenced by or against an **Insured** pursuant to the United States *Bankruptcy Code* or the *Canadian Bankruptcy and Insolvency Act*, both as amended, or any similar foreign, state, provincial, territorial, or local law, you and the **Insured Persons** hereby:

1. waive and release any automatic stay or injunction that may apply in such proceeding to this Policy or its proceeds under such bankruptcy law, and
2. agree not to oppose or object to any effort by us, you, or any **Insured Person** to obtain relief from any such stay or injunction.

E. Cooperation

The **Insured** agrees not to offer to settle or to settle any **Claim**, incur any **Defence Cost** or otherwise assume any contractual obligation, admit any liability or stipulate to any judgement with respect to any **Claim** without our written consent, such consent shall not be unreasonably withheld. We shall not be liable for any offer to settle, settlement, **Defence Cost**, assumed obligation, admission, or stipulated judgement to which we have not given our prior consent.

We shall have the right and shall be given the opportunity to conduct any investigation we deem necessary and to effectively associate with the **Insured** in the investigation, defence and settlement, including but not limited to the negotiation of a settlement, of any **Claim** or **Event** that is or reasonably could be covered in whole or in part by this Policy.

The **Insured** agrees to provide us with all information, assistance and cooperation that we reasonably request and agrees that in the event of a **Claim** or **Event**, the **Insured** shall do nothing that shall prejudice our position or our potential or actual rights of recovery. However, no **Insured Person's** failure to comply with any obligation under this Subsection VIII.E. shall be imputed to any other **Insured Person** for the purpose of determining an **Insured's** compliance with this Subsection VIII.E.

F. Legal Action Against Us

No person or organization has a right under this Policy:

1. to join us as a party or otherwise bring us into a **Claim**; or
2. to sue us on this Policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final and non-appealable judgement against an **Insured**; but we shall not be liable for sums that are not payable under the terms of this Policy or that are in excess of the applicable Limit of Liability. An agreed settlement means a settlement and release of liability agreed to by us, the **Insured**, and the claimant (or the claimant's legal representative).

G. Liberalization

If we adopt any revision to or replacement of this Policy form within 45 days prior to or during the **Policy Period** whereby such new policy form broadens the coverage available under this Policy for which no additional premium is recommended, such broadened coverage shall immediately apply to this Policy without additional premium, provided that the following terms of this Policy shall not be amended by reason of this Subsection:

1. the **Policy Period**;
2. the Aggregate Policy Limit of Liability shown in Item 3. of the Declarations;
3. any applicable Limit of Liability shown in Item 4. of the Declarations;
4. any applicable Self-Insured Retention/Waiting Period shown in Item 4. of the Declarations;
5. any **Retroactive Date** shown in Item 4. of the Declarations; and
6. any Coverage not specifically purchased for this Policy.

H. Material Changes

1. Acquisition or Formation of Subsidiary

- a. If, during the **Policy Period**, the **Named Insured** acquires or forms any **Subsidiary**, then the coverage of this Policy shall automatically apply to such acquired or formed organization and its **Insured Persons** from the date of such acquisition or formation, unless the annual revenue of such acquired or formed organization immediately preceding such acquisition or formation is more than 20% of the consolidated annual revenue of the **Named Insured's** revenues immediately preceding such acquisition or formation.
- b. If, during the **Policy Period**, the **Named Insured** acquires or forms any **Subsidiary** and the annual revenue of such acquired or formed organization immediately preceding such acquisition or formation is more than 20% of the consolidated annual revenue of the **Named Insured's** revenues immediately preceding such acquisition or formation, coverage for such acquired or formed organization and its **Insured Persons** shall apply from the date of such acquisition or formation and be conditioned upon:
 - (1) the **Named Insured** notifying us in writing within 90 days of the acquisition or formation of such organization;
 - (2) our receiving full information including an application as we deem necessary;
 - (3) the **Named Insured's** agreement to any modification, premium adjustment, or both modification and premium adjustment, to this Policy that we may require with respect to such organization;
 - (4) our agreement in writing to provide such coverage; and
 - (5) the **Named Insured's** payment of any additional premium when due.
- c. Coverage under this Policy for any **Subsidiary** formed or acquired during the **Policy Period** and its **Insured Persons** shall apply only to **Wrongful Acts, Regulatory Proceedings, GDPR Proceedings, PCI Demands, or Events** occurring after the **Named Insured's** acquisition or formation of such **Subsidiary**.

2. Cessation of Subsidiaries

If any organization ceases to be a **Subsidiary**, no coverage shall be provided under this Policy with respect to any such organization and its **Insured Persons** for any:

- a. **Wrongful Act** by any such organization or persons,
- b. **Event, Regulatory Proceeding, GDPR Proceeding, or PCI Demand** involving such organization or persons; or
- c. amount claimed under any Coverage incurred or sustained by any such organization or persons, after the date such organization and its **Insured Persons** ceased to be a **Subsidiary**.

3. Acquisition or Bankruptcy of the Named Insured

If during the **Policy Period** a **Takeover** occurs, then such coverage as existed under this Policy before such **Takeover** shall continue in full force and effect for any **Wrongful Act, Regulatory Proceeding, GDPR Proceeding, PCI Demand, or Event** occurring before such **Takeover**. However, solely with respect to the events shown under Subsections III.BQ.1., III.BQ.2., and III.BQ.4. of the definition of **Takeover**, coverage shall cease with respect to any **Wrongful Act, Regulatory Proceeding, GDPR Proceeding, PCI Demand, or Event** occurring after such **Takeover**.

The occurrence of a **Takeover** shall not affect the **Insured's** right to purchase an **Extended Reporting Period** unless all premium due for the remainder of the **Policy Period** has not been fully paid within 30 days of the effective date of such event, in which case the **Insured** shall have no right to purchase the **Extended Reporting Period**.

I. Other Insurance

1. The insurance afforded by this Policy is excess over any valid and collectible insurance available to an **Insured**. However:
 - a. this insurance shall be primary to any insurance specifically arranged by an **Insured** to apply in excess of this insurance; and
 - b. when this Policy and any other coverage form or policy covers on the same basis, either excess or primary, we shall pay only our share. Our share is the proportion that the Limit of Liability of our Policy bears to the total of the limits of all coverage forms and policies covering on the same basis.
2. Coverage provided under Subsection I.B.9. for any **Reputational Damage Income Loss** that is first discovered during the 90 days immediately following the termination of the **Policy Period** shall expressly be excess of any valid and collectible insurance available to an **Insured**.
3. Coverage provided under Subsection I.B.10., I.B.11., and I.B.12. for any **Social Engineering Fraud Cost** shall expressly be excess of any coverage provided by any commercial crime coverage or crime policy maintained by the **Insured**.
4. This Policy is written as specific excess of coverage available under any **Extended Reporting Period**.

J. Policy Termination and Nonrenewal

This Policy shall terminate at the earliest of the effective date of nonrenewal of this Policy or the effective date of cancellation, as described below.

1. Cancellation

- a. The **Named Insured** may cancel this Policy by surrender of this Policy to us or by giving prior written notice to us stating when such cancellation shall take effect.
- b. This Policy may not be cancelled by us except for one or more of the following reasons:
 - (1) nonpayment of premium; or
 - (2) fraud or material misrepresentation affecting this Policy.
- c. Written notice of cancellation shall be mailed or delivered by us to the **Named Insured** at least:
 - (1) 15 days prior to the effective date of cancellation, if this Policy is cancelled for nonpayment of premium; or
 - (2) 60 days prior to the effective date of cancellation, if this Policy is cancelled for any reason other than nonpayment of premium.
- d. In the event of cancellation, we shall refund the unearned premium computed pro rata.

2. Nonrenewal

If we elect not to renew this Policy, we shall mail to the **Named Insured** written notice thereof at least 60 days prior to the expiration of the **Policy Period** unless:

- a. the reason for the nonrenewal is due to the nonpayment of premium; or
- b. the **Named Insured** has obtained replacement coverage with another insurance company.

Our offer of renewal terms and conditions or premium different than those in effect prior to the renewal shall not constitute an election by us not to renew this Policy.

3. Notice

We shall send all notices required under this Subsection VIII.J. by certified mail or registered mail to the **Named Insured** at the address in Item 1. of the Declarations, and by mail or electronic mail to the **Named Insured's** authorized agent or broker, if any. Proof of mailing shall be sufficient proof of notice.

K. Reporting and Notice

1. The following applies to all **Liability Coverages** and **First Party Coverages**:

a. General Notice and Duties Provisions

- (1) Except as otherwise provided in this Policy, all notices under any provision of this Policy shall be in writing and given by prepaid express courier, certified mail, registered mail, electronic mail, or fax properly addressed to the appropriate party. Notice to the **Insured** may be given to the **Named Insured** at the address as shown in Item 1. of the Declarations. Notice to us shall be given to the applicable address shown in Item 6. of the Declarations. Notice given as described above shall be deemed to be received and effective upon actual receipt thereof by the addressee or one day following the date such notice is sent, whichever is earlier, subject to proof of transmittal.
- (2) In the event of any claim under any Coverage, the **Insured** must:
 - (a) cooperate with us in our investigation; and
 - (b) allow us to question the **Insured** under oath at such times as may be reasonably required regarding the **Insured's** books, records, and any other matter relating to such claim for coverage.

b. Non-Disclosure of Notice as Required by Law Enforcement

If the **Insured** receives a request or order from a law enforcement authority or other governmental agency to not disclose certain information about an actual or possible **Privacy Event**, **Security Event**, or **Cyber Extortion**, the notice shall be considered timely under this Policy if:

- (1) as soon as practicable after receipt such request, your **Executive Officer** or employee requests permission to share such information with us;
- (2) you withhold from us only that portion of the information that has been expressly instructed not to share with us; and
- (3) you provide full notice of such **Claim** or **Event** to us as soon as legally permitted.

2. The following applies to **Liability Coverages**:

a. Notice of Claim and Insured's Duties

As a condition precedent to the **Insured's** rights under Subsection I.A. LIABILITY COVERAGES, the **Insured** must give us written notice of any **Claim** made against the **Insured** as soon as practicable after it is made, once any **Executive Officer** becomes aware or receives notification of such **Claim**, but in no event later than:

- (1) ninety days after the termination of the **Policy Period**; or
- (2) the termination of the **Extended Reporting Period**, if exercised.

b. Notice of Circumstances and Insured's Duties

If, during the **Policy Period**, any **Executive Officer** becomes aware of any specific **Wrongful Act** that may reasonably give rise to a future **Claim** covered under this Policy and gives written notice to us during the **Policy Period** of:

- (1) the identity of the potential claimants;
- (2) a description of the anticipated **Wrongful Act** allegations;
- (3) the identity of the **Insured** allegedly involved;
- (4) the circumstances by which the **Insured** first became aware of the **Wrongful Act**;
- (5) the consequences that have resulted or may result; and
- (6) the nature of the potential damages;

then any **Claim** that arises out of such **Wrongful Act** shall be deemed to have been first made at the time such written notice was first received by us.

3. The following applies to **First Party Coverages**:

a. Notice and Duties for Events Applicable to Subsections I.B.1. and I.B.9.

With respect to insurance provided under the Insuring Agreements for Breach Cost Coverage or Reputational Damage Coverage, you must give us prompt written notice of an occurrence as soon as practicable after discovery, but in no event later than 90 days after any **Executive Officer** becomes aware or receives notification of such occurrence and in no event later than 90 days after expiration of the **Policy Period**.

Within six months after such discovery of such occurrence, you must furnish us with a written proof of your claimed loss, duly sworn to, with full particulars.

No legal proceedings for the recovery of any amount may be brought prior to the expiration of 60 days after your original proof of loss is submitted to us or more than 12 months after such discovery of such occurrence.

- b. Notice and Duties for Events Applicable to Subsections I.B.2., I.B.3., I.B.4., I.B.5., I.B.6., I.B.10., I.B.11., I.B.12., and I.B.13.

With respect to insurance provided under the Insuring Agreements for Business Income Loss Coverage, Dependent Business Income Loss Coverage, System Failure Business Income Loss Coverage, System Failure Dependent Business Income Loss Coverage, Digital Asset Replacement Expense Coverage, Social Engineering Funds Transfer Fraud Event Coverage, Social Engineering Theft of Funds Held In Trust Coverage, Social Engineering Theft of Personal Funds Coverage, or Claim Avoidance Coverage, you must give us prompt written notice of an occurrence as soon as practicable, but in no event later than 90 days after such occurrence, and in no event later than 90 days after expiration of the **Policy Period**.

Within six months after such occurrence, you must furnish us with a written proof of its claimed loss, duly sworn to, with full particulars.

No legal proceedings for the recovery of any amount may be brought prior to the expiration of 60 days after your original proof of loss is submitted to us or more than 12 months after the occurrence.

- c. Notice and Duties for Events Applicable to Subsections I.B.7 and I.B.8.

With respect to insurance provided under the Insuring Agreements for Cyber Extortion Coverage or Reward Payment Coverage, you must provide us with prompt written notice as soon as practicable of an occurrence, but in no event later than 90 days after you first receive a **Cyber Extortion**.

Within six months after such receipt of a **Cyber Extortion**, you must furnish us with a written proof of your claimed loss, duly sworn to, with full particulars.

No legal proceedings for the recovery of any amount may be brought prior to the expiration of 60 days after your original proof of loss is submitted to us or more than 12 months after such receipt of a **Cyber Extortion**.

- d. Mitigation

You must take all reasonable steps and measures to limit or mitigate any **First Party Cost** and must take all reasonable steps to protect **Computer Systems, Personal Information, or Protected Information** from further loss or damage.

L. Representations and Severability

1. Representations

The **Executive Officers** represent, warrant and acknowledge that the declarations, agreements, representations and warranties in the written **Application** for this Policy are true and complete, are the basis of this Policy and are to be considered as incorporated into and constituting a part of this Policy. This Policy is issued in reliance upon the truth and completeness of such representations.

2. Severability

Such written **Application** for coverage shall be construed as a separate **Application** by each of the **Insured Persons**. No statement in the **Application** or knowledge possessed by any **Insured Person** shall be imputed to any other **Insured Person** for the purpose of determining if coverage is available. Only the statements in the **Application** made by and knowledge possessed by any of your **Executive Officers** or any person serving in a functionally equivalent position for you, shall be imputed to all **Insureds** for the purpose of determining if coverage is available for any **Insured**.

However, in the event that such written **Application** contains misrepresentations or omissions made with the intent to deceive or which materially affect either the acceptance of the risk or the hazard assumed by us under the Policy, then coverage shall be void *ab initio* as to:

- a. any **Insured Person** who knew of such misrepresentations or omissions (whether or not such individual knew such **Application** contained such misrepresentations or omissions); or
- b. any **Insured** if any **Executive Officer** or signor of the **Application** knew of such misrepresentations or omissions).

M. Subrogation

In the event of any payment under this Policy, we shall be subrogated to the extent of such payment to all of the **Insured's** rights of recovery, and the **Insured** shall execute all papers required and shall do everything necessary to secure and preserve such rights, including the execution of such documents necessary to enable us effectively to bring action or suit in the name of the **Insured**.

We shall waive our right to be subrogated to all of the **Insured's** rights of recovery, provided the **Insured** has waived their rights of recovery in a written contract or written agreement with your customer or **Client** that is executed prior to an event that may give rise to a **Claim of Event**.

All recoveries (except from sureties, insurance, reinsurance or indemnity taken by or for our benefit) obtained after any payment under this Policy, less the actual cost of recovery, shall be applied and distributed as follows:

1. first, to satisfy your liability for amounts that would have otherwise been paid under this Policy but for being in excess of the applicable Limit of Liability;
2. second, to reimburse us for any amount we paid; and
3. third, to you to satisfy any Self-Insured Retention you incurred.

N. Territory and Currency

1. All premiums, Limits of Liability, Self-Insured Retentions, and other amounts under this Policy are expressed and payable in the currency of Canada. If judgement is rendered, settlement is denominated or another element of loss under this Policy is stated in a currency other than Canadian dollars, payment under this Policy shall be made in Canadian dollars at the applicable rate of exchange as published in *The Wall Street Journal* as of the date the judgement is reached, the amount of the settlement is agreed upon or the other element of loss is due, respectively, or, if not published on such date, the next date of publication of *The Globe and Mail*.
2. This Policy applies to **Wrongful Acts** occurring, **Claims** made, **Events** occurring, and any other loss, cost, expense, or damage claimed under any other coverage, anywhere in the world, to the extent permitted by applicable law.

O. Valuation

1. Business Income Loss Coverage, Dependent Business Income Loss Coverage, System Failure Business Income Loss Coverage, and System Failure Dependent Business Income Loss Coverage

Business Income Loss and **Dependent Business Income Loss** shall be calculated on an hourly basis based on the actual **Business Income Loss** and **Dependent Business Income Loss** you sustain during the time period in which **Your Computer System** is affected by the **Interruption of Service**.

In determining the amount of net profit or loss and expenses covered under Business Income Loss Coverage, Dependent Business Income Loss Coverage, System Failure Business Income Loss Coverage, and System Failure Dependent Business Income Loss Coverage, we shall give due consideration to your net profit or loss before the **Interruption of Service** occurred and your probable net profit or loss if no **Interruption of Service** had occurred. However, such net profit or loss calculations shall not include, and this Policy shall not cover, net income that would likely have been earned as a result of an increase in the volume of your business due to favourable business conditions caused by the impact of any event similar to an **Event** suffered by other businesses. You shall provide us with access to all relevant sources of current and up to five years of prior information, including, but not limited to:

- a. your financial records, tax returns, accounting procedures;
- b. bills, invoices and other vouchers; and
- c. deeds, liens and contracts.

2. Digital Asset Replacement Expense

- a. If you cannot restore **Digital Assets** but can recollect such **Digital Assets**, then **Digital Assets Replacement Expenses** shall be limited to the actual cost you incur to recollect such **Digital Assets**.
- b. If you cannot restore or recollect **Digital Assets**, then **Digital Assets Replacement Expenses** shall be limited to the actual cost you incur to reach this determination.

3. Reputational Damage Income Loss

Reputational Damage Income Loss shall be calculated on an hourly basis based on the actual **Reputational Damage Income Loss** you sustain during the **Period of Indemnity**. In determining the amount of net profit or loss and expenses covered under **Reputational Damages Income Loss**, we shall give due consideration to your net profit or loss before the **Adverse Media Event** occurred and your probable net profit or loss if no **Adverse Media Event** had occurred. However, such net profit or loss calculations shall not include, and this Policy shall not cover, net income that would likely have been earned as a result of an increase in the volume of your business due to favourable business conditions caused by the impact of any event similar to an **Adverse Media Event** suffered by other businesses. You shall provide us with access to all relevant sources of information, including, but not limited to:

- a. your financial records, tax returns, accounting procedures;
- b. documentation of your trends and variations in, or other circumstances affecting you before or after the **Adverse Media Event** that would have affected you had no **Adverse Media Event** happened;
- c. bills, invoices and other vouchers; and
- d. deeds, liens and contracts.

Statutory Conditions, General Conditions and Other Conditions



Please refer to the Statutory Conditions, General Conditions and Other Conditions applicable to your Province(s)/ Territory(ies).

1. Statutory Conditions

Page 1 - All Provinces/Territories except:

- a. Alberta, British Columbia and Quebec.
- b. Conditions 5. (Termination) and 15. (Notice) do not apply to Ontario, please see Other Conditions for the Termination and Notice conditions that apply in Ontario.
- c. Condition 14. (Action) does not apply to Manitoba, please see Other Conditions for the Action condition that applies in Manitoba.

Page 4 - Alberta.

Page 8 - British Columbia.

2. General Conditions

Page 12 - Quebec .

3. Other Conditions

Page 18.

Statutory Conditions

(For all provinces except Alberta, British Columbia and Quebec, except that paragraph 14 does not apply to Saskatchewan).

These Statutory Conditions apply to all riders, endorsements, declarations pages and other policy forms attaching to this insurance policy; however, if any of the conditions of any such riders, endorsements, declarations and other policy forms attaching to this insurance policy are more favourable to the insured than those set out in these Statutory Conditions, the conditions more favourable to the insured will prevail.

1. Misrepresentation

Where a person applying for insurance falsely describes the property to the prejudice of the Insurer, or misrepresents or fraudulently omits to communicate a circumstance which is material to be made known to the Insurer in order to enable it to judge the risk to be undertaken, the contract is void as to any property in relation to which the misrepresentation or omission is material.

2. Property of Others

Unless otherwise specifically stated in the contract, the Insurer is not liable for loss or damage to property owned by any person other than the Insured, unless the interest of the Insured is stated in the contract.

3. Change of Interest

The Insurer shall be liable for loss or damage occurring after an authorized assignment under the *Bankruptcy Act* (Canada) or change of title by succession, by operation of law or by death.

4. Material Change

A change material to the risk and within the control and knowledge of the Insured shall void the contract as the part affected by it, unless the change is promptly notified in writing to the Insurer or its local agent; and the Insurer when so notified may return the unearned portion of the premium paid and cancel the contract, or may notify the Insured in writing that, if the Insured desires the contract to continue in force, the Insured shall, within 15 days of the receipt of the notice pay to the Insurer an additional premium; and in default of the payment the contract shall no longer be in force and the Insurer shall return the unearned portion of the premium paid.

5. Termination

- (1) This contract may be terminated.
 - (a) by the Insurer giving to the Insured 15 days' notice of termination by registered mail or five days written notice of termination personally delivered;
 - (b) by the Insured at any time on request.
- (2) Where this contract is terminated by the Insurer,
 - (a) the Insurer shall refund the excess of premium actually paid by the Insured over the proportional premium for the expired time, but, in no event shall the proportional premium for the expired time be considered to be less than any minimum retained premium specified; and
 - (b) the refund shall accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund shall be made as soon as practicable.
- (3) Where this contract is terminated by the Insured, the Insurer shall refund as soon as practicable the excess of premium actually paid by the Insured over the short rate premium for the expired time, but in no event shall the short rate premium for the expired time be considered to be less than a minimum retained premium specified.
- (4) The refund may be made by money, postal or express company money order or by cheque payable at par.
- (5) The 15 days mentioned in clause (1) (a) of this condition start to run on the day following the receipt of the registered letter at the post office to which it is addressed.

6. Requirements After Loss

- (1) Upon the occurrence of a loss of or damage to the insured property, the Insured shall, where the loss or damage is covered by the contract, in addition to observing the requirements of conditions 9, 10 and 11,
 - (a) forthwith give notice of the loss or damage in writing to the Insurer;
 - (b) deliver as soon as practicable to the Insurer a proof of loss verified by a statutory declaration,
 - (i) giving a complete inventory of the destroyed and damaged property and showing in detail quantities, costs, actual cash value and particulars of amount of loss claimed,
 - (ii) stating when and how the loss occurred, and where caused by fire or explosion due to ignition, how the fire or explosion originated, so far as the Insured knows or believes,

- (iii) stating that the loss did not occur through a wilful act or neglect or the procurement, means or connivance of the Insured,
 - (iv) showing the amount of other insurances and the names of other insurers,
 - (v) showing the interest of the Insured and of all others in the property with particulars of all liens, encumbrances and other charges upon the property,
 - (vi) showing any changes in title, use, occupation, location, possession or exposures of the property since the issue of the contract,
 - (vii) showing the place where the property insured was at the time of loss:
 - (c) where required, give a complete inventory of undamaged property and showing in detail quantities, cost, actual cash value;
 - (d) where required, and if practicable, produce books of account, warehouse receipts and stock lists, and furnish invoices and other vouchers verified by statutory declaration, and furnish a copy of the written portion of any other contract.
- (2) The evidence furnished under clauses 1 (c) and (d) of this condition shall not be considered proof of loss within the meaning of conditions 12 and 13.

7. Fraud

A fraud or a wilfully false statement in a statutory declaration in relation to the above particulars, shall vitiate the claim of the person making the declaration.

8. Who May Give Notice and Proof

Notice of loss may be given, and proof of loss may be made, by the agent of the Insured named in the contract in case of absence or inability of the Insured to give the notice or make the proof, and absence or inability being satisfactorily accounted for, or in the like case, or where the Insured refuses to do so, by a person to whom a part of the insurance money is payable.

9. Salvage

- (1) The Insured, in the event of any loss or damage to the property insured under the contract, shall take all reasonable steps to prevent further damage to the property so damaged and to prevent damage to other property insured under the contract including, where necessary, its removal to prevent damage or further damage to the property.
- (2) The Insurer shall contribute proportionally towards reasonable and proper expenses in connection with steps taken by the Insured and required under subparagraph (1) of this condition according to the respective interest of the parties.

10. Entry, Control, Abandonment

After loss or damage to insured property, the Insurer shall have an immediate right of access and entry by accredited agents sufficient to enable them to survey and examine the property, and to make an estimate of the loss or damage, and, after the insured has secured the property, a further right of access and entry sufficient to enable them to make appraisal or particular estimate of the loss or damage, but the Insurer shall not be entitled to the control or possession of the insured property, and without the consent of the Insurer there can be no abandonment to it of insured property.

11. Appraisal

In the event of a disagreement as to the value of the property insured, the property saved or the amount of the loss, those questions shall be determined by appraisal as provided under the *Insurance Act*, or the *Insurance Contracts Act* in the case of Newfoundland and Labrador, before there can be a recovery under this contract whether the right to recover on the contract is disputed or not, and independently of all other questions. There shall be no right to an appraisal until a specific demand for an appraisal is made in writing and until after proof of loss has been delivered.

12. When Loss Payable

The loss shall be payable within 60 days after completion of the proof of loss, unless the contract provides for a shorter period.

13. Replacement

- (1) The Insurer, instead of making payment, may repair, rebuild, or replace the property damaged or lost, giving written notice of its intention to do so within 30 days after receipt of the proof of loss.
- (2) In that event the Insurer shall start to repair, rebuild, or replace the property within 45 days after receipt of the proofs of loss, and shall after that time proceed with all due diligence to the completion of the property.

14. Action

Every action or proceeding against the Insurer for the recovery of a claim under or by virtue of this contract is absolutely barred unless commenced within 1 year next after the loss or damage occurs.

15. Notice

Any written notice to the Insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the Insurer in the province. Written notice may be given to the Insured named in the contract by letter personally delivered to him or her or by registered mail addressed to him or her at his or her latest post office address as notified to the Insurer. In this condition, the expression "registered" means registered in or outside Canada.

Statutory Conditions

(applicable in the province of Alberta). Subject to certain exceptions set out in the Insurance Act and regulations thereunder, the Statutory Conditions are deemed to be part of every contract of insurance in force in the province of Alberta. (**Statutory Conditions** 1 and 6 to 13 apply only to contracts that include insurance against loss or damage to property).

These Statutory Conditions apply to all riders, endorsements, declarations pages and other policy forms attaching to this insurance policy; however, if any of the conditions of any such riders, endorsements, declarations and other policy forms attaching to this insurance policy are more favourable to the insured than those set out in these Statutory Conditions, the conditions more favourable to the insured will prevail.

1. Misrepresentation

If a person applying for insurance falsely describes the property to the prejudice of the insurer, or misrepresents or fraudulently omits to communicate any circumstance that is material to be made known to the insurer in order to enable it to judge the risk to be undertaken, the contract is void as to any property in relation to which the misrepresentation or omission is material.

2. Property of Others

The insurer is not liable for loss or damage to property owned by a person other than the insured unless

- (a) otherwise specifically stated in the contract, or
- (b) the interest of the insured in that property is stated in the contract.

3. Change of Interest

The insurer is liable for loss or damage occurring after an authorized assignment under the *Bankruptcy and Insolvency Act* (Canada) or a change of title by succession, by operation of law or by death.

4. Material Change in Risk

- (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is
 - (a) material to the risk, and
 - (b) within the control and knowledge of the insured.
- (2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.
- (3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may
 - (a) terminate the contract in accordance with Statutory Condition 5, or
 - (b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.
- (4) If the insured fails to pay an additional premium when required to do so under subparagraph (3)(b) of this condition, the contract is terminated at that time and Statutory Condition 5(2)(a) applies in respect of the unearned portion of the premium.

5. Termination of Insurance

- (1) The contract may be terminated
 - (a) by the insurer giving to the insured 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or
 - (b) by the insured at any time on request.
- (2) If the contract is terminated by the insurer,
 - (a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and
 - (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
- (3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the

contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.

- (4) The 15-day period referred to in subparagraph (1)(a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

6. Requirements After Loss

- (1) On the happening of any loss or damage to insured property, the insured must, if the loss or damage is covered by the contract, in addition to observing the requirements of Statutory Condition 9,
- (a) immediately give notice in writing to the insurer,
 - (b) deliver as soon as practicable to the insurer a proof of loss in respect of the loss or damage to the insured property verified by statutory declaration
 - (i) giving a complete inventory of that property and showing in detail quantities and costs of that property and particulars of the amount of loss claimed,
 - (ii) stating when and how the loss occurred, and if caused by fire or explosion due to ignition, how the fire or explosion originated, so far as the insured knows or believes,
 - (iii) stating that the loss did not occur through any wilful act or neglect or the procurement, means or connivance of the insured,
 - (iv) stating the amount of other insurances and the names of other insurers,
 - (v) stating the interest of the insured and of all others in that property with particulars of all liens, encumbrances and other charges on that property,
 - (vi) stating any changes in title, use, occupation, location, possession or exposure of the property since the contract was issued, and
 - (vii) stating the place where the insured property was at the time of loss,
 - (c) if required by the insurer, give a complete inventory of undamaged property showing in detail quantities and cost of that property, and
 - (d) if required by the insurer and if practicable,
 - (i) produce books of account and inventory lists,
 - (ii) furnish invoices and other vouchers verified by statutory declaration, and
 - (iii) furnish a copy of the written portion of any other relevant contract.
- (2) The evidence given, produced or furnished under subparagraph (1)(c) and (d) of this condition must not be considered proofs of loss within the meaning of Statutory Conditions 12 and 13.

7. Fraud

Any fraud or wilfully false statement in a statutory declaration in relation to the particulars required under Statutory Condition 6 invalidates the claim of the person who made the declaration.

8. Who May Give Notice and Proof

Notice of loss under Statutory Condition 6(1)(a) may be given and the proof of loss under Statutory Condition 6(1)(b) may be made

- (a) by the agent of the insured if
 - (i) the insured is absent or unable to give the notice or make the proof, and
 - (ii) the absence or inability is satisfactorily accounted for,or
- (b) by a person to whom any part of the insurance money is payable, if the insured refuses to do so, or in the circumstances described in clause (a) of this condition.

9. Salvage

- (1) In the event of loss or damage to insured property, the insured must take all reasonable steps to prevent further loss or damage to that property and to prevent loss or damage to other property insured under the contract, including, if necessary, removing the property to prevent loss or damage or further loss or damage to the property.
- (2) The insurer must contribute on a prorated basis towards any reasonable and proper expenses in connection with steps taken by the insured under subparagraph (1) of this condition.

10. Entry, Control, Abandonment

After loss or damage to insured property, the insurer has

- (a) an immediate right of access and entry by accredited representatives sufficient to enable them to survey and examine the property, and to make an estimate of the loss or damage, and
- (b) after the insured has secured the property, a further right of access and entry by accredited representatives sufficient to enable them to appraise or estimate the loss or damage, but
 - (i) without the insured's consent, the insurer is not entitled to the control or possession of the insured property, and
 - (ii) without the insurer's consent, there can be no abandonment to it of the insured property.

11. In Case of Disagreement

- (1) In the event of disagreement as to the value of the insured property, the value of the property saved, the nature and extent of the repairs or replacements required or, if made, their adequacy, or the amount of the loss or damage, those questions must be determined using the applicable dispute resolution process set out in the *Insurance Act* whether or not the insured's right to recover under the contract is disputed, and independently of all other questions.
- (2) There is no right to a dispute resolution process under this condition until
 - (a) a specific demand is made for it in writing, and
 - (b) the proof of loss has been delivered to the insurer.

12. When Loss Payable

Unless the contract provides for a shorter period, the loss is payable within 60 days after the proof of loss is completed in accordance with Statutory Condition 6 and delivered to the insurer.

13. Repair or Replacement

- (1) Unless a dispute resolution process has been initiated, the insurer, instead of making payment, may repair, rebuild or replace the insured property lost or damaged, on giving written notice of its intention to do so within 30 days after receiving the proof of loss.
- (2) If the insurer gives notice under subparagraph (1) of this condition, the insurer must begin to repair, rebuild or replace the property within 45 days after receiving the proof of loss and must proceed with all due diligence to complete the work within a reasonable time.

14. Notice

- (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.
- (2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to, the insured's last known address as provided to the insurer by the insured.

15. Action

Every action or proceeding against an Insurer for the recovery of insurance money payable under the contract is absolutely barred unless commenced within the time set out in the *Insurance Act*.

Statutory Conditions

(applicable in the province of British Columbia). Subject to certain exceptions set out in the Insurance Act and regulations thereunder, the Statutory Conditions are deemed to be part of every contract of insurance in force in the province of British Columbia. (**Statutory Conditions** 1 and 6 to 13 apply only to contracts that include insurance against loss or damage to property).

These Statutory Conditions apply to all riders, endorsements, declarations pages and other policy forms attaching to this insurance policy; however, if any of the conditions of any such riders, endorsements, declarations and other policy forms attaching to this insurance policy are more favourable to the insured than those set out in these Statutory Conditions, the conditions more favourable to the insured will prevail.

1. Misrepresentation

If a person applying for insurance falsely describes the property to the prejudice of the insurer, or misrepresents or fraudulently omits to communicate any circumstance that is material to be made known to the insurer in order to enable it to judge the risk to be undertaken, the contract is void as to any property in relation to which the misrepresentation or omission is material.

2. Property of others

The insurer is not liable for loss or damage to property owned by a person other than the insured unless

- (a) otherwise specifically stated in the contract, or
- (b) the interest of the insured in that property is stated in the contract.

3. Change of interest

The insurer is liable for loss or damage occurring after an authorized assignment under the *Bankruptcy and Insolvency Act* (Canada) or a change of title by succession, by operation of law or by death.

4. Material change in risk

- (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is
 - (a) material to the risk, and
 - (b) within the control and knowledge of the insured.
- (2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.
- (3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may
 - (a) terminate the contract in accordance with Statutory Condition 5, or
 - (b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.
- (4) If the insured fails to pay an additional premium when required to do so under subparagraph (3) (b) of this condition, the contract is terminated at that time and Statutory Condition 5 (2) (a) applies in respect of the unearned portion of the premium.

5. Termination of insurance

- (1) The contract may be terminated
 - (a) by the insurer giving to the insured 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or
 - (b) by the insured at any time on request.
- (2) If the contract is terminated by the insurer,
 - (a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and
 - (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
- (3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.
- (4) The 15 day period referred to in subparagraph (1) (a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

6. Requirements after loss

- (1) On the happening of any loss of or damage to insured property, the insured must, if the loss or damage is covered by the contract, in addition to observing the requirements of Statutory Condition 9,
 - (a) immediately give notice in writing to the insurer,
 - (b) deliver as soon as practicable to the insurer a proof of loss in respect of the loss or damage to the insured property verified by statutory declaration,
 - (i) giving a complete inventory of that property and showing in detail quantities and cost of that property and particulars of the amount of loss claimed,
 - (ii) stating when and how the loss occurred, and if caused by fire or explosion due to ignition, how the fire or explosion originated, so far as the insured knows or believes,
 - (iii) stating that the loss did not occur through any wilful act or neglect or the procurement, means or connivance of the insured,
 - (iv) stating the amount of other insurances and the names of other insurers,
 - (v) stating the interest of the insured and of all others in that property with particulars of all liens, encumbrances and other charges on that property,
 - (vi) stating any changes in title, use, occupation, location, possession or exposure of the property since the contract was issued, and
 - (vii) stating the place where the insured property was at the time of loss,
 - (c) if required by the insurer, give a complete inventory of undamaged property showing in detail quantities and cost of that property, and
 - (d) if required by the insurer and if practicable,
 - (i) produce books of account and inventory lists,
 - (ii) furnish invoices and other vouchers verified by statutory declaration, and
 - (iii) furnish a copy of the written portion of any other relevant contract.
- (2) The evidence given, produced or furnished under subparagraph (1) (c) and (d) of this condition must not be considered proofs of loss within the meaning of Statutory Conditions 12 and 13.

7. Fraud

Any fraud or wilfully false statement in a statutory declaration in relation to the particulars required under Statutory Condition 6 invalidates the claim of the person who made the declaration.

8. Who may give notice and proof

Notice of loss under Statutory Condition 6 (1) (a) may be given and the proof of loss under Statutory Condition 6 (1) (b) may be made

- (a) by the agent of the insured, if
 - (i) the insured is absent or unable to give the notice or make the proof, and
 - (ii) the absence or inability is satisfactorily accounted for, or
- (b) by a person to whom any part of the insurance money is payable, if the insured refuses to do so or in the circumstances described in clause (a) of this condition.

9. Salvage

- (1) In the event of loss or damage to insured property, the insured must take all reasonable steps to prevent further loss or damage to that property and to prevent loss or damage to other property insured under the contract, including, if necessary, removing the property to prevent loss or damage or further loss or damage to the property.
- (2) The insurer must contribute on a prorated basis towards any reasonable and proper expenses in connection with steps taken by the insured under subparagraph (1) of this condition.

10. Entry, control, abandonment

After loss or damage to insured property, the insurer has

- (a) an immediate right of access and entry by accredited representatives sufficient to enable them to survey and examine the property, and to make an estimate of the loss or damage, and
- (b) after the insured has secured the property, a further right of access and entry by accredited representatives sufficient to enable them to appraise or estimate the loss or damage, but
 - (i) without the insured's consent, the insurer is not entitled to the control or possession of the insured property, and
 - (ii) without the insurer's consent, there can be no abandonment to it of the insured property.

11. In case of disagreement

- (1) In the event of disagreement as to the value of the insured property, the value of the property saved, the nature and extent of the repairs or replacements required or, if made, their adequacy, or the amount of the loss or damage, those questions must be determined using the applicable dispute resolution process set out in the *Insurance Act*, whether or not the insured's right to recover under the contract is disputed, and independently of all other questions.
- (2) There is no right to a dispute resolution process under this condition until
 - (a) a specific demand is made for it in writing, and
 - (b) the proof of loss has been delivered to the insurer.

12. When loss payable

Unless the contract provides for a shorter period, the loss is payable within 60 days after the proof of loss is completed in accordance with Statutory Condition 6 and delivered to the insurer.

13. Repair or replacement

- (1) Unless a dispute resolution process has been initiated, the insurer, instead of making payment, may repair, rebuild or replace the insured property lost or damaged, on giving written notice of its intention to do so within 30 days after receiving the proof of loss.
- (2) If the insurer gives notice under subparagraph (1) of this condition, the insurer must begin to repair, rebuild or replace the property within 45 days after receiving the proof of loss, and must proceed with all due diligence to complete the work within a reasonable time.

14. Notice

- (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.
- (2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to, the insured's last known address as provided to the insurer by the insured.

15. Action

Every action or proceeding against an Insurer for the recovery of insurance money payable under the contract is absolutely barred unless commenced within the time set out in the *Insurance Act*.

General Conditions

(This Policy is subject to the Civil Code of Quebec)

Reference to Civil Code articles in some instances is for easier reading only and should not be construed as exact quotations.

These General Conditions apply to all riders, endorsements, declarations pages and other policy forms attaching to this insurance policy; however, if any of the conditions of any such riders, endorsements, declarations and other policy forms attaching to this insurance policy are more favourable to the insured than those set out in these General Conditions, the conditions more favourable to the insured will prevail.

For all coverages except where inapplicable.

1. Statements

1.1 Representation of risk (Article 2408)

The client, and the Insured if the Insurer requires it, is bound to represent all the facts known to him which are likely to materially influence an insurer in the setting of the premium, the appraisal of the risk or the decision to cover it, but he is not bound to represent facts known to the Insurer or which from their notoriety he is presumed to know, except in answer to inquiries.

The client means the person submitting an insurance application.

1.2 Material change in risk (Articles 2466 and 2467)

The Insured shall promptly notify the Insurer of any change that increases the risks stipulated in the policy and that results from events within his control if it is likely to materially influence an insurer in setting the rate of the premium, appraising the risk or deciding to continue to insure it.

On being notified of any material change in the risk, the Insurer may cancel the contract or propose, in writing, a new rate of premium. Unless the new premium is accepted and paid by the Insured within thirty days of the proposal, the policy ceases to be in force.

1.3 Misrepresentations or concealment (Articles 2410, 2411 and 2466)

Any misrepresentation or concealment of relevant facts mentioned in section 1.1 and in the first paragraph of section 1.2 by the client or the Insured nullifies the contract at the instance of the Insurer, even in respect of losses not connected with the risk so misrepresented or concealed.

Unless the bad faith of the client or of the Insured is established or unless it is established that the Insurer would not have covered the risk if he had known the true facts, the Insurer remains liable towards the Insured for such proportion of the indemnity as the premium he collected bears to the premium he should have collected.

1.4 Warranties (Article 2412)

Any increase in risk resulting from a breach of warranty suspends the coverage until accepted by the Insurer or until such breach has been remedied by the Insured.

2. General Provisions

2.1 Insurable interest (Articles 2481 and 2484) *(Applicable to property insurance only)*

A person has an insurable interest in a property where the loss or deterioration of the property may cause him direct and immediate damage. It is necessary that the insurable interest exist at the time of the loss but not necessary that the same interest have existed throughout the duration of the contract. The insurance of a property in which the Insured has no insurable interest is null.

2.2 Changes (Article 2405)

The terms of this policy shall not be waived or changed except by endorsement.

2.3 Assignment (Articles 2475 and 2476)

This policy may be assigned only with the consent of the Insurer and in favour of a person who has an insurable interest in the insured property.

Upon the death or bankruptcy of the Insured or the assignment of his interest in the insurance to a co-Insured, the insurance continues in favour of the heir, trustee in bankruptcy or remaining Insured, subject to his performing the obligations that were incumbent upon the Insured.

2.4 Books and records

The Insurer and its authorized representatives shall have the right to examine the Insured's books and records related to the subject matter of this insurance at any time during the period of this policy and the three subsequent years.

2.5 Inspection

The Insurer and its authorized representatives shall have the right but are not obligated to make inspections of the risk, inform the Insured of the conditions found and recommend changes. Any inspections, surveys, findings or recommendations relate only to insurability and the premiums to be charged. They shall not constitute a warranty that the premises, property or operations are safe or healthful or comply with laws, codes or standards.

2.6 Currency

All limits of insurance, premiums and other amounts as expressed in this policy are in Canadian currency.

3. Losses

3.1 Notice of loss (Article 2470)

The Insured shall notify the Insurer of any loss which may give rise to an indemnity, as soon as he becomes aware of it. Any interested person may give such notice.

In the event that the requirement set out in the preceding paragraph is not fully complied with, all rights to compensation shall be forfeited by the Insured where such non-compliance has caused prejudice to the Insurer.

3.2 Information to be provided (Article 2471)

The Insured shall inform the Insurer as soon as possible of all the circumstances surrounding the loss, including its probable cause, the nature and extent of the damage, the location of the insured property, the rights of third parties, and any concurrent insurance; he shall also furnish him with vouchers and swear or warrant to the truth of the information.

Where, for a serious reason, the Insured is unable to fulfil such obligation, he is entitled to a reasonable time in which to do so. If the Insured fails to fulfil his obligation, any interested person may do so on his behalf.

In addition, the Insured shall forthwith send to the Insurer a copy of any notice, letter, subpoena or writ or document received in connection with a claim.

3.3 False representation (Article 2472)

Any deceitful representation entails the loss or the right of the person making it to any indemnity in respect of the risk to which the representation relates.

However, if the occurrence of the event insured against entails the loss of both movable and immovable property or of both property for occupational use and personal property, forfeiture is incurred only with respect to the class of property to which the representation relates.

3.4 Intentional Fault (Article 2464)

The Insurer is never liable to compensate for injury resulting from the Insured's intentional fault.

Where there is more than one Insured, the obligation of coverage remains in respect of those Insureds who have not committed an intentional fault.

Where the Insurer is liable for injury caused by a person for whose acts the Insured is liable, the obligation of coverage subsists regardless of the nature or gravity of that person's fault.

3.5 Notice to police (Applicable to property insurance only)

The Insured must promptly give notice to the police of any loss caused by vandalism, theft or attempted theft or other criminal act.

3.6 Safeguarding and examination of property (Article 2495) *(Applicable to property insurance only)*

At the expense of the Insurer, the Insured must take all reasonable steps to prevent further loss or damage to the insured property and any further loss or damage resulting directly or indirectly from the Insured's failure to take such action shall not be recoverable.

The Insured may not abandon the damaged property if there is no agreement to that effect. The Insured shall facilitate the salvage and inspection of the insured property by the Insurer.

He shall, in particular, permit the Insurer and his representatives to visit the premises and examine the insured property before repairing, removing or modifying the damaged property, unless so required to safeguard the property.

3.7 Admission of liability and cooperation

The Insured shall cooperate with the Insurer in the processing of all claims.

(The following two paragraphs are applicable to liability insurance only : Article 2504)

No transaction made without the consent of the Insurer may be set up against him.

The Insured shall not admit any liability nor settle or attempt to settle any claim, except at his own risk.

3.8 Right of action (Article 2502) *(Applicable to property insurance only)*

The Insurer may set up against the injured third person any grounds he could have invoked against the Insured at the time of the loss, but not grounds pertaining to facts that occurred after the loss; the Insurer has a right of action against the Insured in respect of facts that occurred after the loss.

4. Compensation and Settlement

4.1 Basis of settlement (Articles 2490, 2491, 2493) *(Applicable to property insurance only)*

Unless otherwise provided, the Insurer shall not be liable for more than the actual cash value of the property at the time of the loss as normally determined.

In unvalued policies, the amount of insurance does not make proof of the value of the insured property. In valued policies, the agreed value makes complete proof, between the Insurer and the Insured, of the value of the insured property.

If the amount of insurance is less than the value of the property, the Insurer is released by paying the amount of the insurance in the event of total loss or a proportional indemnity, in the event of partial loss.

4.2 Pair and set (Applicable to property insurance only)

In the case of loss of or damage to any article or articles, whether scheduled or unscheduled, which are part of a set, the measure of loss of or damage to such article or articles shall be a reasonable and fair proportion of the total value of the set, but in no event shall such loss or damage be construed to mean total loss of set.

4.3 Parts (*Applicable to property insurance only*)

In the case of loss of or damage to any part of the insured property, whether scheduled or unscheduled, consisting, when complete for use, of several parts, the Insurer is not liable for more than the insured value of the part lost or damaged, including the cost of installation.

4.4 Replacement (Article 2494) (*Applicable to property insurance only*)

Subject to the rights of preferred and hypothecary creditors, the Insurer re-serves the right to repair, rebuild or replace the insured property. He is then entitled to salvage and may take over the property.

4.5 Time of payment (Articles 1591, 2469 and 2473)

The Insurer shall pay the indemnity within sixty days after receiving the notice of loss or, at his request, all relevant information and vouchers, provided the Insured shall have complied with all the terms of the contract.

Any outstanding premium may be deducted from the indemnity payable.

4.6 Property of others (*Applicable to property insurance only*)

Where a claim is made as a result of loss of or damage to property not owned by the Insured, the Insurer reserves the right to pay the indemnity to the Insured or to the owner of the property and to deal directly with such owner.

4.7 Waiver

Neither the Insurer nor the Insured shall be deemed to have waived any term or condition of the policy by any act relating to arbitration or to the completion or delivery of proof of loss, or to the investigation or adjustment of the claim.

4.8 Limitation of actions (Article 2925)

Every action or proceeding against the Insurer under this policy shall be commenced within three years from the date the right of action has arisen.

4.9 Subrogation (Article 2474)

Unless otherwise provided, the Insurer shall be subrogated to the extent of the amount paid or the liability assumed therefor under this policy to the rights of the Insured against persons responsible for the loss except when they are members of the Insured's household. The Insurer may be fully or partly released from his obligation towards the Insured where, owing to any act of the Insured, he cannot be so subrogated.

5. Other Insurance

5.1 Property insurance (Article 2496)

The Insured who, without fraud, is insured by several insurers, under several policies, for the same interest and against the same risk so that the total amount of indemnity that would result from the separate performance of such policies would exceed the loss incurred may be indemnified by the insurer or insurers of his choice, each being liable only for the amount he has contracted for.

No clause suspending all or part of the performance of the contract by reason of other insurance may be used against the Insured.

Unless otherwise agreed, the indemnity is apportioned among the insurers in proportion to the share of each in the total coverage, except in respect of specific insurance, which constitutes primary insurance.

5.2 Liability insurance

The liability insurance provided under this policy is primary insurance except when stated to apply in excess of, or contingent upon the absence of, other insurance. When this insurance is primary and the Insured has other insurance which is stated to be applicable to the loss on an excess or contingent basis, the amount of the Insurer's liability under this policy shall not be reduced by the existence of such other insurance. When both this insurance and other insurance apply to the loss on the same basis whether primary, excess or contingent, the Insurer shall not be liable under this policy for a greater proportion of the loss than that stated in the applicable contribution provision below:

- Contribution by equal share:

If all of such other collectible insurance provides for contribution by equal shares, this Insurer shall not be liable for a greater proportion of such loss than would be payable if each insurer contributed an equal share until the share of each insurer equals the lowest applicable limit of liability under any one policy or the full amount of the loss is paid, and with respect to any amount of loss not so paid the remaining insurers then continue to contribute equal shares of the remaining amount of the loss until each such insurer has paid its limit in full or the full amount of the loss is paid.

- Contribution by limits:

If any such other insurance does not provide for contribution by equal shares, this Insurer shall not be liable for a greater proportion of such loss than the applicable limit of liability under this policy for such loss bears to the total applicable limit of liability of all valid and collectible insurance against such loss.

6. Cancellation (Articles 2477 and 2479)

This policy may be cancelled at any time:

- (a) By mere written notice from each of the Named Insureds. Termination takes effect upon receipt of the notice and the Insured shall therefore be entitled to a refund of the excess of the premium actually paid over the short-term rate for the expired time.
- (b) By the Insurer giving written notice to each of the Named Insureds. Termination takes effect fifteen days following receipt of such notice by the Insured at his last known address and the Insurer shall refund the excess of premium actually paid over the pro rata premium for the expired time. If the premium is subject to adjustment or determination as to amount, the refund shall be made as soon as practicable.

Where one or more of the Named Insureds have been mandated to receive or send the notices provided for under paragraph (a) or (b) above, notices sent or received by them shall be deemed to have been sent or received by all Named Insureds.

In this Condition, the words "premium actually paid" mean the premium actually paid by the Insured to the Insurer or its representative, but do not include any premium or part thereof paid to the Insurer by a representative unless actually paid to the representative by the Insured.

7. Notice

Any notice to the Insurer may be sent by any recognized means of communication to the Insurer or its authorized representative. Notice may be given to the named Insured by letter personally delivered to him or by mail addressed to him at his last known address.

It is incumbent upon the sender to prove that such notice was received.

Other Conditions

The Conditions shown below are deemed to be part of every contract of insurance in force in the province of Ontario:

Termination

- (1) This contract may be terminated,
 - (a) by the insurer giving to the insured fifteen days' notice of termination by registered mail or five days' written notice of termination personally delivered or delivered by prepaid courier if there is a record by the person who delivered it that the notice has been sent;
 - (b) by the insured at any time on request;
- (2) Where this contract is terminated by the insurer,
 - (a) the insurer shall refund the excess of premium actually paid by the insured over the proportionate premium for the expired time, but, in no event, shall the proportionate premium for the expired time be deemed to be less than any minimum retained premium specified; and
 - (b) the refund shall accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund shall be made as soon as practicable.
- (3) Where this contract is terminated by the insured, the insurer shall refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time, but in no event shall the short rate premium for the expired time be deemed to be less than any minimum retained premium specified.
- (4) The refund may be made by money, postal or express company money order or cheque payable at par.
- (5) The fifteen days mentioned in clause (1) (a) of this condition commences to run on the day following the receipt of the registered letter at the post office to which it is addressed.

Notice

- (1) Written notice may be given to the insurer in the following ways:
 - (a) It may be personally delivered at the chief agency or head office of the insurer in the Province.
 - (b) It may be sent by registered mail to the chief agency or head office of the insurer in the Province.
 - (c) It may be delivered by electronic means.
- (2) Written notice may be given to the insured named in the contract in the following ways:
 - (a) It may be personally delivered.
 - (b) It may be delivered by prepaid courier to the latest address of the insured on the records of the insurer if there is a record by the person who has delivered it that the notice has been sent.

(c) It may be sent by registered mail to the latest address of the insured on the records of the insurer.

(d) It may be delivered by electronic means, if the insured consents to delivery by electronic means.

(3) In this condition, the expression “registered” means registered in or outside Canada.

The Condition shown below is deemed to be part of every contract of insurance in force in the province of Manitoba:

Action

Every action or proceeding against an Insurer for the recovery of insurance money payable under the contract is absolutely barred unless commenced within the time set out in the Insurance Act.

Trade and Economic Sanctions Limitation

This endorsement changes the policy. Please read it carefully.

This endorsement modifies insurance provided under the policy it forms part of.

Notwithstanding any other terms under this agreement, no insurer shall be deemed to provide coverage or will make any payments or provide any service or benefit to any insured or other party to the extent that such cover, payment, service, benefit and/or any business or activity of the insured would violate any applicable trade or economic sanctions law or regulation.

Except as provided herein, all the terms and conditions of this policy shall have full force and effect.



ZURICH[®]

Additional Insured Endorsement (Automatic)

Endorsement # 1

Policy No.	8616314-06	Effective Date:	October 01, 2025
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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the:

Zurich Cyber Insurance Policy

It is agreed that:

I. Section III. DEFINITIONS is amended as follows:

A. Subsection III.AF. is replaced with the following:

AF. **Insured** means you, the **Insured Persons**, and any **Additional Insureds**.

B. The following definition is added:

Additional Insured means any natural person or entity with whom you have expressly agreed in writing, prior to the commission of a **Wrongful Act**, to add as an additional insured under this Policy, but only with respect to **Loss** or **Defence Costs** incurred by such **Additional Insured** as a result of:

(a) your **Wrongful Act(s)**; or

(b) the **Wrongful Act(s)** of **Insured Persons**,

otherwise covered by this Policy. This Policy does not provide coverage for any **Wrongful Act** or **Event** committed in whole or in part by any **Additional Insured**.

II. The following is added to Subsection IV.L.:

It is further provided that this exclusion shall not apply to any **Claim** brought by an **Additional Insured**.

All other terms, conditions, provisions and exclusions of this Policy remain the same.



ZURICH[®]

Property Damage Amended Endorsement

Endorsement # 2

Policy No.

8616314-06

Effective Date:

October 01, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the:

Zurich Cyber Insurance Policy

It is agreed that:

I. Subsection III.BB. is replaced with the following:

BB. Property Damage:

1. means physical injury to tangible property, including all resulting loss of use of that property, or loss of use of tangible property that has not been physically injured; and
2. does not include:
 - a. corruption, loss, or destruction of **Electronic Data**; or
 - b. the loss of use of electronic equipment due to unauthorized reprogramming of **Software** on such electronic equipment rendering it useless for its intended purpose.

Tangible property does not include **Electronic Data** or **Software**.

II. Subsection III.BH. is replaced with the following:

BH. Security Event means any:

1. **Unauthorized Access** to;
2. **Unauthorized Use** of;
3. physical theft by a person other than an **Insured** of;
4. introduction of **Malicious Code** into; or
5. **Denial of Service Attack** upon,

Your Computer System causing a breach of **Your Network Security** that results in:

- a. an **Interruption of Service**;

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- b. the theft, alteration, destruction, loss, or unauthorized release of **Electronic Data** on **Your Computer System**;
- c. the denial of an authorized user's access to **Your Computer System**, unless such denial of access is caused by a mechanical or electrical failure outside the control of the **Insured**;
- d. the participation by **Your Computer System** in a **Denial of Service Attack** or digital currency mining directed against a third party's **Computer System**;
- e. the transmission of **Malicious Code** from **Your Computer System** to a third party's **Computer System**;
- f. the alteration, corruption or destruction of **Digital Assets** or **Protected Information**; or
- g. the loss of use of all or part of a **Computer System** caused by the unauthorized reprogramming of **Software** that renders such **Computer System**, or any component thereof, nonfunctional or useless for its intended purpose.

All other terms, conditions, provisions and exclusions of this Policy remain the same.

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Additional Insured Endorsement (Scheduled)

Endorsement # 3

Policy No.

8616314-06

Effective Date:

October 01, 2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the:

Zurich Cyber Insurance Policy

It is agreed that:

Schedule		
Entity	Retroactive Date	Applicable Coverage
All NYCT Agreements (Except 2 Broadway, 2460 2 nd Avenue., NYC, and 180 Livingston Street, Brooklyn, NY) : New York City Transit Authority ("NYCT"), the Manhattan and Bronx Surface Transit Operating Authority ("MaBSTOA"), the Staten Island Rapid Transit Operating Authority ("SIRTOA"), the Metropolitan Transportation Authority ("MTA") including its subsidiaries and affiliates, MTA Construction & Development Company ("MTA C&D"), MTA Bus Company ("MTA Bus"), MTA Grand Central Madison Concourse Operating Company (GCMCOC), and the City of New York ("City " as Owner) and the respective affiliates and subsidiaries existing currently or in the future of and successors to each Indemnified Parties listed herein.	April 24, 2019 April 24, 2019 April 24, 2019 April 24, 2019 April 24, 2019 April 24, 2019	Security Liability Coverage Privacy Liability Coverage Media Liability Coverage Regulatory Proceedings Coverage General Data Protection Regulations Proceedings Coverage Payment Card Industry Demand Coverage

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Entity	Retroactive Date	Applicable Coverage
MTA Bus MTA Bus Company ("MTA Bus"), MTA Construction & Development Company ("MTA C&D"), Metropolitan Transportation Authority ("MTA") , including its subsidiaries and affiliates, State of New York, City of New York, PBS Capital LLC, MIU Realty, LLC, JLK Capital, LLC, Green Bus Holding Corp., Jamaica Bus Holding Corp., Triboro Coach Holding Corp. and New York Bus services and its affiliates and the respective affiliates and subsidiaries existing currently or in the future and successors to each entity listed herein.	April 24, 2019 April 24, 2019 April 24, 2019 April 24, 2019 April 24, 2019 April 24, 2019	Security Liability Coverage Privacy Liability Coverage Media Liability Coverage Regulatory Proceedings Coverage General Data Protection Regulations Proceedings Coverage Payment Card Industry Demand Coverage

Solely with respect to the Entity shown in the Schedule above and only with respect to the Applicable Coverage shown in the Schedule above:

I. The Retroactive Date shown in Item 4. of the Declarations is replaced with the Retroactive Date shown in the Schedule above for such purchased Insuring Agreement.

II. Section III. DEFINITIONS is amended as follows:

A. Subsection III.AF. is replaced with the following:

AF. **Insured** means you, the **Insured Persons**, and any **Additional Insureds**.

B. The following definition is added:

Additional Insured means any natural person or entity shown as an Entity in the Schedule of the Additional Insured Endorsement (Scheduled), but only with respect to **Loss** or **Defence Costs** incurred by such **Additional Insured** as a result of:

(a) your **Wrongful Act(s)**; or

(b) the **Wrongful Act(s)** of **Insured Persons**,

otherwise covered by this Policy. This Policy does not provide coverage for any **Wrongful Act** or **Event** committed in whole or in part by any **Additional Insured**.

II. The following is added to Subsection IV.L.:

It is further provided that this exclusion shall not apply to any **Claim** brought by an **Additional Insured**.

All other terms, conditions, provisions and exclusions of this Policy remain the same.

Critical Infrastructure Excluded Endorsement

Endorsement # 4

Policy No.	8616314-06	Effective Date:	October 01, 2025
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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the:

Zurich Cyber Insurance Policy

It is agreed that:

I. The following definitions are added to Section III. DEFINITIONS:

- A. **Core Internet Infrastructure** means internet service providers (ISP), network service providers (NSP), domain name system (DNS) providers, content delivery network (CDN) providers, or Certificate Authorities.
- B. **Securities and Financial Markets Infrastructure** means financial exchanges, central counterparty clearing houses, central securities depositories, or central banking systems.

II. Subsection IV.O. is deleted in its entirety and replaced with the following:

O. Critical Infrastructure Outage

based upon, arising out of, or attributable to, any power or electrical failure, interruption, degradation or outage, however caused, including any surge, brownout, blackout, short circuit, over voltage, or power fluctuation, to utilities (including but not limited to electricity, gas or water), **Securities and Financial Markets Infrastructure**, **Core Internet Infrastructure**, or other telecommunications infrastructure (including but not limited to satellite, cable, radio, broadcast, wired and wireless communications networks).

Provided, however, this exclusion shall not apply to the failure, interruption, degradation or outage of **Core Internet Infrastructure** or other telecommunications infrastructure under the **Insured's** direct operational control as a result of a **Security Wrongful Act** or **Security Event** directly involving **Your Computer System**.

All other terms, conditions, provisions, and exclusions of this policy remain the same.

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War or Cyber Operation Excluded Endorsement (No Attribution Clause)

Endorsement # 5

Policyholder	NFI Group Inc.		
Policy Number	8616314-06	Effective Date of Endorsement	October 01, 2025
Effective Date of Policy	October 01, 2025	Expiry Date of Policy	October 01, 2026
Additional Premium	N/A	Return Premium	N/A

This endorsement changes the policy. Please read it carefully

This endorsement modifies insurance provided under the following:

Zurich Cyber Insurance Policy

It is agreed that:

- I. In the event this endorsement conflicts with any other endorsement, whether issued before, contemporaneously with, or subsequent thereto, or with any terms, conditions, provisions, or exclusions in this Policy, this endorsement shall take precedence and control the application of this Policy.
- II. Solely for the purposes of this Endorsement, Section III. DEFINITIONS is amended as follows:
 - A. Subsection III.M. is deleted.
 - B. The following definitions are added:

Bodily Injury means bodily injury, sickness or disease, or death and includes mental anguish, emotional distress, pain and suffering, shock, or humiliation, of any person.

Cyber Operation means the use of a **Computer System** by, at the direction of, or under the control of a **Nation-State** to:

1. disrupt, deny access to, or degrade functionality of a **Computer System**, and/or
2. copy, remove, manipulate, deny access to, or destroy information in a **Computer System**.

Essential Service means a service that is essential for the maintenance of vital functions of a **Nation-State**, including but not limited to utility services, financial institutions, and associated financial market infrastructure, health services, emergency services (police, emergency medical, and fire) or its military.

Nation-State means a nation, state-like entity, sovereign-state, or agent, and any subdivision, department, person, entity, or other government authority acting on behalf of any of the foregoing.

War means:

1. physical force, armed conflict, or invasion by a **Nation-State** against one or more nation-states, whether **War** has been declared or not, including any preemptive or defensive action; or
2. physical force, armed conflict or invasion relating to civil war, uprising, rebellion, usurped power, or insurrection within a **Nation-State** by its citizens, military, or other constituents, including any preemptive or defensive action.

C. Subsection III. BB is replaced by :

Property Damage means physical injury or loss to tangible property, including all resulting loss of use of that property, or loss of use of tangible property that has not been physically injured.

III. Solely for the purposes of this Endorsement, Section IV. EXCLUSIONS is amended as follows:

A. Subsection IV.A. is replaced with the following:

A. Bodily Injury, Mental Anguish or Property Damage

based upon, arising out of, or attributable to any actual or alleged:

1. **Property Damage**; or
2. **Bodily Injury**; provided, however, this Subsection IV.A.2. does not apply to mental anguish, emotional distress, pain and suffering, or shock resulting from a **Privacy Wrongful Act**.

B. Subsection IV.Y. is replaced with the following:

Y. War or Cyber Operation

This Policy does not apply to **Loss, Defense Costs, or First Party Costs** on account of any **Claim or Event** based upon, attributable to, or arising out of:

- 1 directly or indirectly, **War**;
2. a **Cyber Operation** as part of **War** regardless of the timing, staging, deployment, or order of use with other methods of **War**; or
3. a **Cyber Operation**, independent of **War**, that has a major detrimental impact on the functioning of an impacted sovereign state, its security or defense, and/or the availability or integrity of, or the ability to deliver, one or more **Essential Services** of an impacted sovereign state.

Provided, however, Subsection IV.Y.3. above shall not apply to a **Security Event, Privacy Event, or Cyber Extortion** upon **Your Computer System** if the **Computer System** is not physically located, in whole or in part, in the impacted **Nation-State**.

For avoidance of any doubt, with respect to a **Security Event, Privacy Event, or Cyber Extortion** as set forth in Subsection IV.Y.3. above, there is no coverage for **Property Damage** arising therefrom, unless any resulting **Property Damage** is limited to and relates solely to the corruption, loss, or destruction of **Electronic Data**, and/or to the loss of use of electronic equipment due to unauthorized reprogramming of **Software** on such electronic equipment rendering it useless for its intended purpose. There is no coverage for **Bodily Injury** under any circumstance.

- C. These exclusions shall apply regardless of any other fact, circumstance, situation, **Wrongful Act**, or **Event** that contributes concurrently or in any sequence with any of the excluded causes of loss set forth in this endorsement.

All other terms, conditions, provisions, and exclusions of this policy remain the same.

Subsidiary Amended Definition with Retroactive Dates Endorsement



THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Policy No. 8616314-05

Effective Date: October 01, 2025

This endorsement modifies insurance provided under the:

Zurich Cyber Insurance Policy

It is agreed that:

I. The following is added to Subsection III.BO.:

Subsidiary also means any other entity listed in the Subsidiary Schedule below:

Subsidiary Schedule
Alexandre Dennis Limited

II. With respect to each **Subsidiary** listed in the Schedule, above, Items 4.A,1. 4.A.2., 4.A.3., 4.A.4, 4.A.5., 4.A.6., and 4.B.9. of the Declarations are amended as follows:

Retroactive Date(s):	A.1. Security Liability Coverage: 05/28/19
	A.2. Privacy Liability Coverage: 05/28/19
	A.3. Media Liability Coverage: 05/28/19
	A.4. Regulatory Proceedings Coverage: 05/28/19
	A.5. General Data Protection Regulations Proceedings Coverage: 05/28/19
	A.6. Payment Card Industry Demand Coverage: 05/28/19
	B.9. Reputational Damage Coverage: 05/28/19

All other terms and conditions of the policy remain unchanged.